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BACHELOR'S THESIS

THE USE OF THE HUMAN RIGHTS CONCEPT IN THE FIGHT AGAINST CLIMATE CHANGE: INTERNATIONAL LEGAL RESEARCH

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"Addressing climate change is a human rights issue.

And the world demands action, now"

Volker Türk, the current UN High Commissioner for Human Rights[1]

INTRODUCTION

In its Resolution 7/23, the Human Rights Council (hereinafter – **UN HRC**) expressed concern that "climate change poses an immediate and far-reaching threat to people and communities around the world, with implications for the full enjoyment of human rights".[2] Public international law faces challenges in addressing this problem, which has a number of pitfalls, including, but not limited to, rising sea levels, State extinction[3], the phenomenon of "climate refugees"[4], and potential violations of the right to a clean, healthy, and sustainable environment[5]. Subsequently, the human rights concept has been applied by both domestic and international courts.[6] For instance, in the *Urgenda* case, the Court of Appeal in The Hague held that the Dutch government had an obligation under the European Convention on Human Rights to protect the right

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[1]OHCHR. (2023). Addressing climate change—Now. URL: https://www.ohchr.org/en/statements/2023/07/addressing-climate-change-now#::text=The%20people%20who%20must%20act,the%20world%20demands%20action%2C%20now (accessed: 26.01.2025)

[2] UN HRC Resolution 7/23 of 28 March 2008 *"Human rights and climate change"*. URL: https://www.uncclearn.org/wp-content/uploads/library/a_hrc_res_7_23.pdf (accessed: 18.01.2025).

[3] Sharon, O. (2021). State Extinction Through Climate Change // *Debating Climate Law* / ed. by Alexander Zaher, Benoit Mayer. Cambridge: Cambridge University Press. P. 349–364.

[4] Feijen L. (2012). Jane McAdam - Climate Change, Forced Migration, and International Law. *Utrecht Journal of International and European Law*, 28(75). P. 61–64.

[5] Saura-Freixes N. (2022). Environmental human rights defenders, the rule of law and the human right to a healthy, clean, and sustainable environment: last trends and challenges. *Unio - EU Law Journal*, 8(1). P. 53–79.

[6] See, e.g., UN HRC. *Ioane Teitiota v. New Zealand*. Views. Communication no. 2728/2016. Decision of 7 January 2020. (hereinafter –*Teitiota v. New Zealand*); UN HRC. *Daniel Billy and others v. Australia.* Views. Communication no. 3624/2019. Decision of 21 July 2022. (hereinafter – *Billy and others v. Australia*); *Urgenda Foundation v. The State of the Netherlands.* (2015) The Hague District Court. Case №C/09/456689 / HA ZA 13-1396. Decision of 24 June 2015; *VZW Klimaatzaak v Kingdom of Belgium & Others.* (2023). 6 Court of Appeal, Brussels. Case № 2021/AR/15gs, 2022/AR/737, 2022/AR/891. Judgment of 30 November 2023; *Notre Affaire à Tous and Others v. France*. (2021). Administrative Court of Paris. Case № 1904967, 1904968, 1904972, 1904976/4-1 Judgment of 3 February 2021.

to life and the right to respect for private and family life from the real threat of climate change.[7] Another illustration is the case of *KlimaSeniorinnen v. Switzerland*, in which the European Court of Human Rights (hereinafter – **ECtHR**) ruled that Switzerland had violated the right to respect for private and family life by failing to address the climate change problem.[8] There are also two forthcoming advisory opinions on climate change and human rights from the International Court of Justice (hereinafter – **ICJ**)[9] and the Inter-American Court of Human Rights (hereinafter – **IACtHR**).[10] As a result, international human rights law is increasingly used to address climate change, highlighting **the relevance of the research**.

In terms of **existing scholarship**, the subject-matter of the present research is rapidly gaining popularity within the Russian doctrine of public international law. Prior to this study, a small number of legal scholars have commented on climate change

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[7] *The State of the Netherlands v. Urgenda Foundation.* (2018) Court of Appeal. Case №200.178.245/01. Decision of 9 October 2018.

[8] ECtHR. *Verein KlimaSeniorinnen Schweiz and Others v. Switzerland*. [GC] Application no. 53600/20. Judgment of 9 April 2024 (hereinafter – *KlimaSeniorinnen v. Switzerland*).

[9] ICJ. *Request for advisory opinion on obligations of states in respect of climate change transmitted to the Court pursuant to General Assembly resolution 77/276 of 29 March 2023*. URL: https://www.icj-cij.org/case/187 (accessed: 18.01.2025).

[10] IACtHR. *Request for an advisory opinion on the scope of the state obligations for responding to the climate emergency transmitted from the Republic of Colombia and the Republic of Chile of 9 January 2023*. URL: https://climatecasechart.com/wp-content/uploads/nonuscasedocuments/2023/20230109_18528_petition-2.pdf (accessed: 18.01.2025).

litigation[11] as well as on arbitration in the field of climate change.[12] For instance, Solntsev A., analysing the case of *Teitiota v. New Zealand*, summed up that "obligations to cooperate in countering the detrimental effects of climate change are *erga omnes* in nature"[13], while Galperin M. emphasised that the *KlimaSeniorinnen v. Switzerland* case formed an exception for non-governmental organisations that will (hereinafter – **NGOs**) allow them to continue filing climate-related complaints with the ECtHR.[14] This aspect has also been addressed in journal articles of foreign writers.[15]

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[11] See e.g., Солнцев А.М. (2024). Климатические проблемы в решениях национальных и международных судов и межгосударственных органов. *Социальные и гуманитарные науки*. Отечественная и зарубежная литература: ИАЖ. Сер. 4: Государство и право. № 1. С. 149–163; Солнцев А., Отрашевская А. (2024). Комитет ООН по правам человека: комментарий Решения от 13 сентября 2023 года по делу о компенсации за ущерб от последствий изменения климата (о жителях Торресова пролива). *Международное правосудие*, 1(49). С. 3–23; Солнцев А. (2020). Приоткрывая ящик Пандоры: анализ мнения Комитета по правам человека о «климатических» беженцах 2020 года. *Международное правосудие*, 3 (35). С. 41–54; Гальперин М. (2024). О «зелёном» переходе и процессуальной революции: Обзор постановлений Большой Палаты Европейского Суда по правам человека от 9 апреля 2024 года по делам *Карем против Франции* (жалоба № 7189/21), *Дуарте Агустино и другие против Португалии и 32 других* (жалоба № 39371/20), *Верейн Климасеньоринен Швайц и другие против Швейцарии* (жалоба № 53600/20). *Международное правосудие*, № 2 (50). С. 3–19; Ермакова Е. П. (2020). Судебные иски к правительствам и частным компаниям стран Европы о защите климата в рамках Парижского соглашения 2015 г. (Великобритания, Нидерланды, Германия, Франция). *Вестник Пермского университета*. Юридические науки, 49. С. 604–625.

[12] See e.g., Ермакова Е.П. (2021). Арбитраж как средство разрешения споров об изменении климата. Труды Института государства и права РАН / Proceedings of the Institute of State and Law of the RAS. 16(5). С. 55–78.

[13] Солнцев А. (2020). *Указ. соч.* С. 53.

[14] Гальперин М. *Указ. соч.* С. 17.

[15] See e.g., Bell-James J. Collins B. (2022). Human rights and climate change litigation: Should temporal imminence form part of positive rights obligations? *Journal of Human Rights and the Environment*. 13(1). P. 212–237; Fraser J. Henderson L. van de mens R. et al. (2022). The human rights turn in climate change litigation and responsibilities of legal professionals. *Netherlands Quarterly of Human Rights*. 40(1). P. 3–11; Keturakienė A. Murauskas D. (2023). Climate Change and Human Rights: The First Cases Before the European Court of Human Rights. *Teisė*. 126. P. 38–55; Rocha A. Sampaio R. (2023). Climate change before the European and Inter-American Courts of Human Rights: Comparing possible avenues before human rights bodies. *Review of European, Comparative & International Environmental Law*. 32(2). P. 279–289; McMenamin R. (2023). Advisory Opinion on Obligations of States in Respect of Climate Change: Potential Contribution of Human Rights Bodies. *Climate Law*. 13. P. 213–223; Hösli A. Rehmann M. (2024). Verein KlimaSeniorinnen Schweiz and Others v. Switzerland: The European Court of Human Rights' Answer to Climate Change. *Climate Law*. 14.(3-4). P. 263–284; Fermeglia M. Luporini R. (2024). 'Urgenda-Style' Strategic Climate Change Litigation in Italy: A Tale of Human Rights and Torts? *Chinese Journal of Environmental Law*. 7(2). P. 245–260.

Besides, the issue of environmental rights was touched upon in academic literature.[16] The majority of legal scholars highlighted the human rights dimension of climate change.[17] Prior to the study, the role of human rights law in combating climate change had been the subject of some academic papers.[18] For example, Putra A. concludes that "international human rights law may play a significant role in closing the current climate change framework gap."[19] By contrast, Mayer B. states that "human rights treaties may have a rather limited role to play with regard to climate change mitigation."[20] Others raised the issue of widespread "climate injustice" at the local, national, and global levels.[21] While there have been previous attempts to determine the role of human rights mechanisms in combating climate change, this research will focus on the assessment of the appropriateness of using the human rights concept in addressing climate change. In addition, the present research attempts to identify the

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[16] See e.g., Солнцев А., Отрашевская А. (2022). Развитие концепции экологических прав человека в практике Межамериканского суда по правам человека. *Международное правосудие*, 1(41). С. 57–78; Cima E. (2022). The right to a healthy environment: Reconceptualizing human rights in the face of climate change. *Review of European, Comparative & International Environmental Law*. 31(1). P. 38–49.

[17] See, e.g., Venn A. (2022). Rendering International Human Rights Law Fit for Purpose on Climate Change. *Human Rights Law Review*, 23(1). P. 1–25; Bellinkx, V., Casalin, D., Erdem Türkelli, G., Scholtz, W., & Vandenhole, W. (2021). Addressing Climate Change through International Human Rights Law: From (Extra)Territoriality to Common Concern of Humankind // *Transnational Environmental* Law / ed. by Blokker, Dam and v. Prisland. Cambridge: Cambridge University Press. P. 69–93; Voigt C. (2022). The climate change dimension of human rights: due diligence and states' positive obligations. *Journal of Human Rights and the Environment*, 13(0). P. 152–171; Jodoin S., Savaresi A. Wewerinke-Singh M. (2021). Rights-based approaches to climate decision-making. *Current Opinion in Environmental Sustainability*. 52. P. 45–53; Абатурова В., Близнецкая Е. (2023). Использование механизмов защиты прав человека в решении проблемы глобального изменения климата. *Международное правосудие*, 4(48). С. 37–57; Mayrhofer M. (2024). Framing UN Human Rights Discourses on Climate Change: The Concept of Vulnerability and its Relation to the Concepts of Inequality and Discrimination. *International Journal for the Semiotics of Law*, 37(1). P. 91–117.

[18] See, e.g., Putra A. (2021). The Role of International Human Rights Law in Fights Against Climate Change. *Jurnal Media Hukum*. 28(2). P. 153–164; Mayer B. (2021). Climate Change Mitigation as an Obligation Under Human Rights Treaties? *American Journal of International Law*, 115(3). P. 409 –451; Levy S.R. Gopang M. Ramírez L. Bernardo A.B.I. Ruck M.D. Sternisko A. (2024). A human rights-based approach to climate injustices at the local, national, and international levels: Program and policy recommendations. *Social Issues and Policy Review*, 18(1). P. 3–30.

[19] Putra A. *Op.cit*. P. 161.

[20] Mayer B. *Op.cit*. P. 451.

[21] Levy S.R. Gopang M. Ramírez L. Bernardo A.B.I. Ruck M.D. Sternisko A. *Op.cit*. P. 8.

rationale for States to enforce the judicial decisions of international human rights bodies using the examples of Australia and Switzerland (*Billy and others v. Australia* and *KlimaSeniorinnen v. Switzerland*). Thus, **the novelty** of the research is the assessment of the appropriateness of the application of human rights to climate change and enforcement of this model through the lens of legal formalism, the New Haven School and a rational choice theory (International law & economics approach).

The first part of the **research question** of the study is whether the use of the human rights concept in tackling the climate change problem is appropriate, and what its limitations would be. The second part of the **research question** the study is why States enforce the judicial decisions of international human rights bodies on the issue of climate change.

The **methodology** of the research is legal formalism (positivism), a policy-oriented approach (the New Haven School) and a rational choice theory (International Law & Economics approach). The research is mainly based on treaty law (climate change and human rights treaties) and customary law (written statements of States, resolutions of international fora). In addition to primary sources of international law, the jurisprudence of international and national courts is of paramount importance for the application of the human rights concept in climate disputes. While legal formalism and the New Haven School are used to assess the appropriateness of using the human rights concept in addressing climate change, a rational choice theory is used to identify the rationale of States in enforcing the judicial decisions of international human rights bodies. A variety of **methods** are used, including comparison, systematisation, dogmatic analysis, case studies, and forecasting.

The **structure of the research** consists of an introduction; three chapters, containing a total of 7 sections; a conclusion; and a bibliography. The first chapter aims to establish a human rights protecting function of the climate change treaties, as well as to compare the approaches of domestic and international courts in the field of climate change litigation, with a particular focus on the human rights dimension. The second chapter aims to identify potential and limitations of the existing international legal

norms in the sphere of international human rights law in addressing the climate change problem. This chapter also examines the phenomenon of “climate refugees” and the right to a clean, healthy and sustainable environment through the lens of the existing international law. The third chapter aims to assess the appropriateness of using the human rights concept in addressing the issue of climate change through two tools of the research, namely legal formalism (positivism) and a policy-oriented approach to international law (the New Haven School). The enforcement of this model is analysed from the perspective a rational choice theory (International law & economics approach).

I. THE HUMAN RIGHTS DIMENSION OF CLIMATE CHANGE

The first chapter begins by determining human rights aspects of climate change. The chapter aims to establish a human rights protecting function of the climate change treaties, as well as to compare the approaches of domestic and international courts in the field of climate change litigation, with a particular focus on the human rights dimension.

§ 1. Fight with climate change in international law

The climate change problem is a contemporary challenge for the international community, impacting numerous areas of international law, ranging from international environmental law to international human rights law. For the first time, the United Nations General Assembly (hereinafter – **UN GA**) recognised climate change as a common concern of mankind in its Resolution 43/53 in 1988.[22] After 20 years, climate change has become "one of the greatest challenges of our time", as reaffirmed in the UN GA Resolution 67/210 of 21 December 2012.[23]

Owing to the 2018 Report of the Intergovernmental Panel on Climate Change (hereinafter – **IPCC**), 'climate change consensus' has been reached. In that report, the IPCC states that there is a high risk of a much worse outcome if the temperature rise exceeds 1.5°C above pre-industrial levels.[24] In its 2023 Synthesis Report, the IPCC

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[22] UN GA Resolution A/RES/43/53 of 6 December 1988 *"Protection of global climate for present and future generations of mankind"*. URL: https://digitallibrary.un.org/record/54234?v=pdf (accessed: 18.01.2025).

[23] UN GA Resolution A/RES/67/210 of 21 December 2012 *"Protection of global climate for present and future generations of humankind"*. URL: https://documents.un.org/doc/undoc/gen/n12/491/20/pdf/n1249120.pdf (accessed: 18.01.2025).

[24] Masson-Delmotte, V. et al. IPCC, 2018: Summary for Policymakers. In: Global Warming of 1.5°C. An IPCC Special Report on the impacts of global warming of 1.5°C above pre-industrial levels and related global greenhouse gas emission pathways, in the context of strengthening the global response to the threat of climate change, sustainable development, and efforts to eradicate poverty. URL: https://www.ipcc.ch/sr15/chapter/spm/ (accessed: 18.01.2025).

affirmed that that human activities, principally through greenhouse gases "have unequivocally caused global warming."[25]

D. Bodansky is describing the development of the climate change regime as a play in four acts: (i) the negotiation and adoption of the United Nations Framework Convention on Climate Change (hereinafter – **UNFCCC**); (ii) the Kyoto Protocol; (iii) the adoption of the Copenhagen Accord in 2009 and the Cancun Agreements the following year; (iv) the negotiation and implementation of the Paris Agreement.[26]

One of the core of climate change treaties is the UNFCCC. To date, there are 198 parties to it, including 196 States, the European Union and the Holy See.[27] Despite the fact that the UNFCCC established framework provisions with regard to the climate change problem, it is binding in nature.[28] Thus, the UNFCCC established the objective and guiding principles of the UN climate change regime[29] as well as the regime's core institutions, for example, the annual Conference of the Parties (hereinafter – **COP**)[30] and a system of reporting and review.[31]

On 11 December 1997, the third COP adopted the Kyoto Protocol to the UNFCCC. Currently, it has 192 parties. The US did not ratify the document, Canada withdrew from it on December 12, 2012.[32] The Kyoto Protocol envisaged specific

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[25] 2023 Synthesis Report: A Report of the Intergovernmental Panel on Climate Change. URL:https://www.ipcc.ch/report/ar6/syr/downloads/report/IPCC_AR6_SYR_FullVolume.pdf (accessed: 18.01.2025).

[26] Bodansky D. (2023). The UN Climate Change Regime Thirty Years on: A Retrospective and Assessment+. *Environmental Policy and Law*, 53(1). P. 20.

[27] UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetailsIII.aspx?src=IND&mtdsg_no=XXVII7&chapter=27&Temp=mtdsg3&clang=_en#1 (accessed: 18.01.2025).

[28] Redgwell, C. (2018). Sources of International Environmental Law: Formality and Informality in the Dynamic Evolution of International Environmental Law Norms // The Oxford Handbook of the Sources of International Law / ed. by S. Besson S., J. d'Aspremont. Oxford: Oxford University Press. P. 944–945.

[29] The United Nations Framework Convention on Climate Change (signed on June 1992-1993, and entered into force on 21 March 1994).

[30] Art. 7 of the UNFCCC.

[31] Art. 12 of the UNFCCC.

[32] UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=XXVII-7-a&chapter=27&clang=_en (accessed: 18.01.2025).

personalized obligations of State parties, as well as a list of greenhouse gas emissions (hereinafter – **GHG**).[33] Unlike the UNFCCC, the Kyoto Protocol is expressed as an obligation of result with a strict timeframe. From 2008 to 2012, the Protocol aims to reduce the total greenhouse gas emissions of participating countries by a minimum of five per cent compared to 1990.[34] However, both the UNFCCC and Kyoto Protocol did not mention human rights dimension of the issue of climate change.

Prior to the adoption of the Paris Agreement, the Parties to the UNFCCC recognised in the Decision of the Conference on the Cancun Agreements that "Parties should, in all climate change related actions, fully respect human rights".[35] On 12 December 2015, the twenty-first COP adopted the Paris Agreement. To date, there are 195 Parties to it, including 168 States Parties to the Agreement.[36] The Paris Agreement has become an outcome of the post-Kyoto COPs. The Agreement aims to implement the UNFCCC, which implies holding the increase in the global average temperature to well below 2°C above pre-industrial levels and pursuing efforts to limit the temperature increase to 1.5°C.[37]

In terms of the human rights dimension, only non-binding preamble of the Paris Agreement acknowledges that "Parties should when taking action to address climate change, respect, promote and consider their respective obligations on human rights, the right to health, the rights of indigenous peoples, local communities, migrants, children, persons with disabilities and people in vulnerable situations and the right to development as well as gender equality, empowerment of women and intergenerational equity." [38] The Paris Agreement thus reminds every State to fulfil its obligations under

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[33] The Kyoto Protocol (signed on 11 December 1997, and entered into force on 16 February 2005), Annex A.
[34] Climate Change Regulations: Global Practice and Perspectives. International and Comparative Law Research Center. Moscow, 2021. P. 23.
[35] Decision 1/CP.16. The Cancun Agreements: Outcome of the work of the Ad Hoc Working Group on Long-term Cooperative Action under the Convention, FCCC/CP/2010/7/Add.1. URL: https://unfccc.int/resource/docs/2010/cop16/eng/07a01.pdf (accessed: 18.01.2025).
[36] Paris Agreement – Status of Ratification. URL: https://unfccc.int/process/the-paris-agreement/status-of-ratification (accessed: 18.01.2025).
[37] The Paris Agreement (signed on 22 April 2016, and entered into force on 4 November 2016).
[38] Ibid.

the Agreement in the light of its human rights obligations. Interestingly, in case of *PSB et al. v. Brazil (on Climate Fund)*, the Supreme Court of Brazil found that "treaties on environmental law are a species of the genus human rights treaties and enjoy, for this reason, supranational status".[39] As Carazo emphasises, the Paris Agreement is unique because it goes beyond the realms of international climate and environmental law, particularly because it refers to human rights, rights of particular groups, gender equality and intergenerational equity.[40] Moreover, the use of the word 'should' implies a 'soft' obligation, which is not usually found in a treaty preamble.[41] Regarding *travaux préparatoires* to the Paris Agreement, an earlier form of recital 11 was more specific, as it referred to States' obligations to promote, protect and respect human rights.[42] As D. Bodansky points out, the Preamble "addresses the human rights aspects only of response measures not of climate change itself." This is a central point, which concerns obligations "to take affirmative measures to prevent human rights harms caused by climate change, including foreseeable long-term harms."[43]

Certain rights are mentioned for a reason in recital 11. Indeed, a plethora of resolutions adopted by the UN HRC have reflected the rights to health[44] and

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[39] *PSB et al. v. Brazil (on Climate Fund)* (2022). Supreme Court of Brazil. ADPF 708. Decision of 30 June 2022. § 17.

[40] Carazo M.P. (2017). Contextual Provisions (Preamble and Article 1), in: Klein D., Carazo M. P., Doelle M., Bulmer J. and Higham A. (eds) // The Paris Agreement on Climate Change: Analysis and Commentary. Oxford: Oxford University Press. P. 113–114.

[41] Ibid. P. 115–116.

[42] Earth Negotiations Bulletin. 2015. Geneva and Bonn meetings: *Emphasizing the importance of promoting, protecting and respecting all human rights, including [to promote sustainable development, and] the rights of indigenous peoples, migrants, children, persons with disabilities and people in vulnerable situations and under occupation, as well as promoting health, gender equality and the empowerment of women, while taking into account the needs of local communities, intergenerational equity concerns, and the integrity of Mother Earth, when taking action to address climate change.*

[43] Bodansky, D., Brunnée, J., Rajamani, L. (2019). International Climate Law. Oxford: Oxford University Press. P. 227–228.

[44] See, e.g., UN HRC Resolutions 32/33 of 1 July 2016, 35/20 of 22 June 2017, 38/4 of 5 July 2018, 41/21 of 12 July 2019, 44/7 of 16 July 2020, 47/24 of 14 July 2020, 50/9 of 7 July 2022, 53/6 of 12 July 2023 *"Human rights and climate change"*; UN HRC Resolution 52/23 of 4 April 2023 *"The human right to a clean, healthy and sustainable environment"*.

development[45], as well as the empowerment of girls and women[46] and the protection of children[47] in the context of climate change. Moreover, UN HRC resolution 53/6 of 19 July 2023 extended the catalogue of human rights stipulated in recital 11 by incorporating the right to food.[48] Consequently, the catalogue of human rights that are predominantly impacted by climate change encompasses the right to food, the right to health, the right to development, the right to a clean, healthy and sustainable environment, and the rights of vulnerable groups, including, *inter alia*, women, children, people with disabilities, migrants, indigenous peoples. Thus, the special attention is drawn to undepressed groups in climate-related issues.

To sum up, firstly, the climate change regime is comprised of the UNFCCC, the Kyoto Protocol, and the Paris Agreement; secondly, in the non-binding preamble of the Paris Agreement respective human rights obligations of States were acknowledged; thirdly, a lot of UN HRC resolutions emphasised the importance of enjoyment of certain human rights in the context of climate change, encompassing the right to food,

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[45] See, e.g., UN HRC Resolutions 26/27 of 15 July 2014, 29/15 of 22 July 2015, 32/33 of 1 July 2016, 35/20 of 22 June 2017, 38/4 of 5 July 2018, 41/21 of 12 July 2019, 44/7 of 16 July 2020, 47/24 of 14 July 2020, 50/9 of 7 July 2022, 53/6 of 12 July 2023 *"Human rights and climate change"*; UN HRC Resolution 52/23 of 4 April 2023 *"The human right to a clean, healthy and sustainable environment"*.

[46] See, e.g., UN HRC Resolutions 38/4 of 5 July 2018, 41/21 of 12 July 2019, 44/7 of 16 July 2020, 47/24 of 14 July 2020, 50/9 of 7 July 2022, 53/6 of 12 July 2023 *"Human rights and climate change"*; UN HRC Resolution 45/30 of 13 October 2020 *"Rights of the child: realizing the rights of the child through a healthy environment"*; UN HRC Resolution 48/13 of 18 October 2021*"The human right to a clean, healthy and sustainable environment"*; UN HRC Resolution 51/17 of 12 October *"Youth and human rights"*; UN HRC Resolution 52/23 of 4 April 2023 *"The human right to a clean, healthy and sustainable environment"*.

[47] See, e.g., UN HRC Resolutions 32/33 of 1 July 2016, 35/20 of 22 June 2017, 41/21 of 12 July 2019, 44/7 of 16 July 2020, 47/24 of 14 July 2020, 50/9 of 7 July 2022, 53/6 of 12 July 2023 "Human rights and climate change"; UN HRC Resolution 19/4 of 3 April 2012 *"Adequate housing as a component of the right to an adequate standard of living in the context of disaster settings"*; UN HRC Resolution 40/11 of 2 April 2019 *"Recognizing the contribution of environmental human rights defenders to the enjoyment of human rights, environmental protection and sustainable development"*; UN HRC Resolution 45/30 of 13 October 2020 *"Rights of the child: realizing the rights of the child through a health environment"*; UN HRC Resolution 48/13 of 18 October 2021"*The human right to a clean, healthy and sustainable environment"*; UN HRC Resolution 51/17 of 12 October *"Youth and human rights"*; UN HRC Resolution 52/23 of 4 April 2023 *"The human right to a clean, healthy and sustainable environment"*.

[48] UN HRC Resolution 53/6 of 19 July 2023 *"Human rights and climate change"*. URL: https://www.ohchr.org/en/climate-change/human-rights-council-resolutions-human-rights-and-climate-change (accessed: 18.01.2025).

the right to health, the right to development, the right to a clean, healthy and sustainable environment, and the rights of vulnerable groups. It follows that the preamble of the Paris Agreement reflects a human rights protecting function in the fight against climate change. Subsequently, these provisions have been interpreted in climate change litigation, in particular by international human rights bodies.

§ 2. Using the human rights concept in climate change litigation

2.1 A genesis of international jurisprudence regarding human rights and climate change

Currently, the climate change problem is attracting increasing attention from international adjudicatory institutions. Climate disputes have been the subject of hearings at the ICJ, the International Tribunal for the Law of the Sea (hereinafter – **ITLOS**), the UN human rights treaty bodies, the European Court of Justice (hereinafter – **ECJ**), the Inter-American Commission of Human Rights (hereinafter – **IACHR**), the IACtHR, and the ECtHR.

For the first time, the climate change agenda was presented at the IACHR. There have been two unsuccessful petitions lodged with the IACHR: the *Inuit* petition in 2005[49] and the *Athabaskan Council* petition of 2013.[50] In the *Inuit* petition, it was asserted that the United States' climate change policy was having a detrimental effect on the Arctic environment, thereby violating a number of their rights, including the right to health, life and property.[51] Whereas the *Athabaskan Council* petition alleged that the absence of effective legislation on black carbon emissions in Canada was

[49] Centre for International Environmental Law (CIEL) "Petition to the Inter-American Commission on Human Rights Seeking Relief from Violations resulting from Global Warming Caused by Acts and Omissions of the United States on Behalf of all INUIT of the Arctic Regions of the United States and Canada" (Inuit Petition). URL: http://www.ciel.org/Publications/ICC_Petition_7Dec05.pdf (accessed: 18.01.2025) (hereinafter – Inuit petition).

[50] Earthjustice "Petition to the Inter-American Commission on Human Rights Seeking Relief from Violations of the Rights of Arctic Athabaskan Peoples Resulting from Rapid Arctic Warming and Melting caused by Emissions of Black Carbon by Canada" (Athabaskan Petition). URL: http://earthjustice.org/sites/default/files/AAC_ PETITION_13-04-23a.pdf (accessed: 18.01.2025) (hereinafter – Athabaskan petition).

[51] See *Inuit* petition.

expediting Arctic warming, thereby endangering the rights of the Arctic Athabaskan people to culture, property, and health, rights which are entrenched in the American Declaration.[52] The *Inuit* petition was rejected on the grounds that the information provided in the communication was insufficient to "characterize a violation of the rights protected by the American Declaration."[53]. Nevertheless, no decision has yet been made on the Athabaskan petition. Comparing the Inter-American Commission to the African Commission, A.O. Jegede stresses that these complaints show that "the Inter-American Commission is perceived by populations in that region as a platform to ensure accountability with regards to the adverse effects of climate change."[54]

Later, an *actio popularis* was attempted before the ECJ. In the case of *Armando Ferrão Carvalho and Others v. European Parliament and Council*, ten families brought an action before the General Court, asking it to annul three EU legislative acts for failing to set adequate greenhouse gas emission targets. However, the General Court declared the case inadmissible for lack of *locus standi*.[55] The Court stressed that "although all persons may in principle each enjoy the same right (such as the right to life or the right to work), the effects of climate change and, by extension, the infringement of fundamental rights is unique to and different for each individual."[56] The applicants appealed to the ECJ. Similarly, the ECJ upheld the General Court's order and held the claim inadmissible on standing grounds.[57]

It is worth noting that the issue of climate change was considered on its merits for the first time in 2019, when the UN Human Rights Committee (hereafter – **HR Committee**) adopted its views on the case of *Teitiota v. New Zealand*. The author of

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[52] See *Athabaskan* petition.
[53] "Letter from Ariel E Dulitzky, Assistant Executive Sectary, Organisation of American States, to Paul Crowley, Legal Rep. (Nov. 16, 2006)" URL: http://graphics8.nytimes.com/packages/pdf/science/16commissionletter.pdf. (accessed: 18.01.2025).
[54] Jegede A. O. (2017). Climate change in the work of the African Commission on human and peoples' rights, *Speculum Juris*. Vol. 31, No. 2. P. 144.
[55] The EU General Court. *Armando Ferrão Carvalho and Others v. The European Parliament and the Council*. T-330/18. Order of 8 May 2019. § 44.
[56] Ibid. § 46.
[57] ECJ. *Armando Ferrão Carvalho and Others v. European Parliament and Council*. C-565/19 P. Judgment of 25 March 2021.

the communication was Ioane Teitiota, a national of the Republic of Kiribati born in the 1970s. His application for refugee status in New Zealand was rejected. He claimed that the State party violated his right to life under the Covenant, by removing him to Kiribati in September 2015.[58] As A. Solntsev notes, in this case the HR Committee acknowledged that, subject to a number of criteria, "climate" refugees have grounds not to be deported to a country where climate change leads to such disastrous consequences, which can state a violation of the right to life.[59] Notwithstanding that the HR Committee did not find a violation of Teitiota's right to life, the Committee pointed out that 'without robust national and international efforts, the effects of climate change in receiving States may expose individuals to a violation of their rights under articles 6 or 7 of the Covenant, thereby triggering the *non-refoulement* obligations of sending States'.[60] Thus, the Committee simultaneously reminded States about the fact that climate change can have adverse effects on human rights, thereby laying the foundation for future climate-related complaints.

After two years, sixteen children and teenagers (including Greta Thunberg) lodged a complaint with the Committee on the Rights of the Child (hereinafter – **CRC**). However, all four complaints were declared inadmissible for failure to exhaust domestic remedies. Noticeably, the CRC recognized the authors' victim status, since children have established *prima facie* that they have personally experienced real and significant harm from the State party's acts or omissions regarding the carbon emissions originating in its territory.[61] Thus, the authors could have won this case if they had exhausted the domestic remedies.

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[58] *Teitiota v. New Zealand*. § 1.1
[59] Солнцев А. (2020). *Указ. Соч.* С. 53.
[60] *Teitiota v. New Zealand*. § 9.11.
[61] See UN CRC. *Chiara Sacchi et al. v. Argentina.* Views. Communication no. 104/2019. Decision of 22 September 2021; UN CRC. *Chiara Sacchi et al. v. Brazil.* Views. Communication no. 105/2019. Decision of 22 September 2021; UN CRC. *Chiara Sacchi et al. v. France.* Views. Communication no. 106/2019. Decision of 22 September 2021; UN CRC. *Chiara Sacchi et al. v. Germany.* Views. Communication no. 107//2019. Decision of 22 September 2021; UN CRC. *Chiara Sacchi et al. v. Türkiye.* Views. Communication no. 108/2019. Decision of 22 September 2021.

In 2022, a landmark decision was adopted, marking a pivotal victory in a climate change dispute against the State. In the *Billy and others v. Australia* case, the HR Committee recognised for the first time that indigenous culture is under threat due to the effects of climate change.[62] In this case, a group of eight Torres Strait Islanders, Australian citizens, and their six children brought a complaint against Australia before the HR Committee. They argued that Australia violated their right to life, the right to privacy, and the right to enjoy their own culture, to profess and practise their own religion, or to use their own language under the International Covenant on Civil and Political Rights (hereinafter – **ICCPR or Covenant**). In their opinion, the State Party failed to adopt both adaptation and mitigation measures in addressing climate change.[63] The HR Committee concluded that Australia had violated Articles 17 and 27 of the Covenant, since **i)** it failed to discharge its positive obligation to implement adequate adaptation measures to protect the authors' home, private life and family[64]; **ii)** it failed to adopt timely adequate adaptation measures to protect the authors' collective ability to maintain their traditional way of life, to transmit to their children and future generations their culture and traditions and use of land and sea resources[65].

It is worth noting that eventually the HR Committee decided that Australia is obliged, *inter alia*, **a)** to provide adequate compensation to the authors for the harm that they have suffered; **b)** engage in meaningful consultations with the authors' communities in order to conduct needs assessments; **c)** continue its implementation of measures necessary to secure the communities' continued safe existence on their respective islands; **d)** monitor and review the effectiveness of the measures implemented and resolve any deficiencies as soon as practicable'.[66] As A. Solntsev and A. Otrazhevskaya note, the *Billy and others v. Australia* case has become a 'precedent' prohibiting States from hiding behind the 'drop in the ocean' argument in the context

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[62] Солнцев А., Отрашевская А. (2024). *Указ соч.* С. 20.
[63] *Billy and others v. Australia*. § 3.1.
[64] Ibid. § 8.12.
[65] Ibid. § 8.14.
[66] Ibid. § 11.

of climate change and the inability to take responsibility for adaptation and mitigation.[67] Thus, this landmark decision of the HR Committee extended its evolutionary approach of interpretation of the provisions of the Covenant in the context of climate change, which was subsequently applied by the ECtHR.

In 9 April of 2024, the ECtHR delivered two decisions and one judgment concerning the issue of climate change.[68] In the case of *Carême v. France,* the applicant was Damien Carême, former mayor of the commune of The Grand Synth, located near Dunkirk in the north of the country. He complained that the respondent State was not taking adequate measures to prevent climate change and was therefore violating the rights set forth in Articles 2 and 8 of the European Convention on Human Rights (hereinafter – **ECHR or Convention**).[69] However, the Court declared this case inadmissible, since (i) the applicant did not have a victim status because of the hypothetical nature of the risk relating to climate change and (ii) 'governmental organisations' have no standing to make an application to the Court under Article 34 of the Convention.[70] Accordingly, the case is incompatible with the *ratione personae* requirement. Another case is *Duarte Agostinho et al. v. Portugal and Others*, in which six applicants brought a complaint to the ECtHR against Portugal and 32 States alleging that there had been a breach of Articles 2, 3, 8 and 14 of the Convention owing to the existing, and serious future, impacts of climate change imputable to the respondent States, and specifically those in relation to heatwaves, wildfires and smoke from wildfires, which affected their lives, well-being, mental health and the amenities of their homes.[71] Similarly, this case was declared inadmissible. Firstly, the ECtHR did not extend the Convention's extraterritorial scope to 32 States based on the climate

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[67] Солнцев А., Отрашевская А. (2024). *Указ соч.* С. 20.
[68] ECtHR. *Carême v. France*. [GC] Application no. 7189/21. Decision of 9 April 2024 (hereinafter – *Carême v. France)*; ECtHR. *Duarte Agostinho and Others v. Portugal and Others and 32 Others*. [GC] Application no. 39371/20. Decision of 9 April 2024 (hereinafter – *Duarte Agostinho et al. v. Portugal and Others*).
[69] *Carême v. France.* § 1-12.
[70] Ibid. §§ 80, 85.
[71] *Duarte Agostinho et al. v. Portugal and Others*. § 3.

change problem.[72] Secondly, the applicants were not entitled to an exemption from exhausting domestic remedies.[73] So the Court declared the complaint as inadmissible for failure to exhaust domestic remedies.[74]

In the *Verein KlimaSeniorinnen Schweiz and Others v. Switzerland* case, the ECtHR ruled that that Switzerland had violated the right to respect for private and family life by failing to address the climate change problem. The complaint was logged with the Court by four senior Swiss women and a non-profit association 'Verein KlimaSeniorinnen Schweiz' of which they were members.[75] The applicants argued that domestic emissions reduction targets are insufficient, unconstitutional and incompatible with the ECHR and international law. Moreover, in their opinion, Switzerland had no justification for their inaction in the field of climate change.[76] Based on this factual background, they claim that the respondent State violated the rights set out in Articles 2, 8, 6 and 13 of the Convention. The Court thus elaborated a three-step test for *locus standi*, stipulating that an association must be **(a)** lawfully established in the jurisdiction concerned or have standing to act there; **(b)** able to demonstrate that it pursues a dedicated purpose in accordance with its statutory objectives in the defence of the human rights of its members or other affected individuals within the jurisdiction concerned, whether limited to or including collective action for the protection of those rights against the threats arising from climate change; **(c)** able to demonstrate that it can be regarded as genuinely qualified and representative to act on behalf of members or other affected individuals within the jurisdiction who are subject to specific threats or adverse effects of climate change on their lives, health or well-being as protected under the Convention.[77] As M. Gaplperin notes, such high

[72] Ibid. § 202.
[73] Ibid. § 226.
[74] Ibid. § 231.
[75] *KlimaSeniorinnen v. Switzerland*. § 1.
[76] Ibid. § 25.
[77] Ibid. § 502.

criteria were developed in order to avoid facing millions of individual complaints from applicants, inspired by his willingness to evaluate the State's environmental policy.[78]

Besides, in the *KlimaSeniorinnen v. Switzerland* case, the Court for the first time considered an alleged violation of the Convention in the context of climate change. According to its settled case law, there is a two-stage test for complaints relating to environmental nuisances: **(i)** an 'actual interference' with the applicant's enjoyment of his or her private or family life or home; **(ii)** a certain level of severity was attained.[79] Accordingly, Article 8 imposes a positive obligation on States to adopt, and to effectively apply in practice, regulations and measures capable of mitigating the existing and potentially irreversible, future effects of climate change.[80] In accordance with Article 8 of the Convention, Contracting State is obliged to undertake measures for the substantial and progressive reduction of their respective GHG emission levels, with a view to reaching net neutrality within, in principle, the next three decades. Regarding the assessment of the effectiveness of the measures, it is incumbent on the public authorities to act in good time, in an appropriate and consistent manner.[81] That said, in the present case, the Court noted some critical lacunae in the Swiss authorities' process of putting in place the relevant domestic regulatory framework, including a failure by them to quantify, through a carbon budget or otherwise, national GHG emissions limitations. Furthermore, Switzerland had previously failed to meet its past GHG emission reduction targets. Based on this, the respondent State exceeded its *margin of appreciation* and failed to comply with its positive obligations under Article 8 of the Convention.[82]

In addition to a violation of Article 8 of the ECHR, the Court highlighted the importance of access to justice in the field of climate change and concluded that there

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[78] Гальперин М. *Указ соч.* С. 13.
[79] Ibid. § 514; ECtHR. *Pavlov and Others v. Russia*. Application no. 31612/09. Judgment of 11 October 2022. §59; ECtHR. *Çiçek and Others v. Turkey*. Application no. 44837/07. Decision of 4 February 2020. §22.
[80] Ibid. § 545.
[81] Ibid. § 548.
[82] Ibid. § 573.

has been a violation of Article 6 § 1 of the Convention, since the association's right of access to a court was restricted in a such way and to such an extent that the very essence of the right was impaired.[83] At the current time, there are seven pending climate change-related cases before the ECtHR.[84] Analysing the applicants, there is a hypothesis that those applications that were submitted by individuals will most likely be considered inadmissible[85], and those involving NGOs will be considered on the merits.[86] According to A. Hösli and M. Rehmann, this judgment will generally strengthen the position of associations before national courts in climate change disputes.[87] In the conclusion of his commentary on the *KlimaSeniorinnen v. Switzerland* case, M. Galperin hypothesises that the *locus standi* exception for non-profit associations can evolve into a prevailing norm.[88] However, in the recent case of *Cannavacciuolo and Others v. Italy*, the ECtHR pointed out that *locus standi* criteria set out in the *KlimaSeniorinnen v. Switzerland* case are applicable only in climate-change context.[89]

Before the final rulings of the ECtHR, A. Rocha and R. Sampaio predicted that human rights courts were likely to be reluctant to adopt a liberal understanding of States' climate-related obligations, and the optimal outcome is one that encourages

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[83] Ibid. §§ 638, 640.

[84] See *Uricchiov v. Italy and 31 Other States,* Application no. 14615/21; *De Conto v. Italy and 32 Other States*, Application no. 14620/21; *Müllner v. Austria*, Application no. 18859/21; *Greenpeace Nordic and Others v. Norway*, Application no. 34068/21; *The Norwegian Grandparents' Climate Campaign and Others v. Norway,* Application no. 19026/21; So*ubeste and four other applications v. Austria and 11 Other States,* Application nos. 31925/22, 31932/22, 31938/22, 31943/22 and 31947/22); *Engels v. Germany,* Application no. 46906/22.

[85] See, e.g., *Uricchiov v. Italy and 31 Other States,* Application no. 14615/21; *De Conto v. Italy and 32 Other States*, Application no. 14620/21; *Müllner v. Austria*, Application no. 18859/21; So*ubeste and four other applications v. Austria and 11 Other States,* Application nos. 31925/22, 31932/22, 31938/22, 31943/22 and 31947/22); *Engels v. Germany,* Application no. 46906/22.

[86] See, e.g., *Greenpeace Nordic and Others v. Norway*, Application no. 34068/21; *The Norwegian Grandparents' Climate Campaign and Others v. Norway,* Application no. 19026/21.

[87] Hösli A. Rehmann M. P. *Op.cit*. P. 284.

[88] Гальперин М. *Указ соч.* С. 17.

[89] ECtHR. *Cannavacciuolo and Others v. Italy*. Application nos. 51567/14, 39742/14, 74208/14, 21215/15. Judgment of 30 January 2025. § 220.

State action without encouraging excessive applications.[90] In fact, in the *KlimaSeniorinnen v. Switzerland* case, a narrow approach was applied, which only allows non-governmental organisations to file complaints against States in climate disputes.

On the 21st of May in 2024, the ITLOS delivered its *Advisory Opinion on Climate Change and International Law.*[91] Although the Opinion primarily addressed the relationship between the United Nations Convention on the Law of the Sea (UNCLOS) and climate change treaties, the Tribunal noted that "climate change represents an existential threat and raises human rights concerns."[92] Thus, the ITLOS has also highlighted the impact of climate change on human rights. Presently, there are two forthcoming advisory opinions. The ICJ is in the process of preparing an *Advisory Opinion on the Obligations of States in respect of Climate Change*[93], in which one of the questions covers the impact of climate change on human rights.[94] While the IACtHR is currently engaged in the preparation of an *Advisory Opinion on human rights and the climate emergency*.[95] Furthermore, 96 States and 11 international organisations participated in oral hearings at the ICJ. Each of them prepared a written statement on the issue of States' obligations in respect of climate change. The majority of the submissions related to the question of human rights. These positions are analysed in more detail in the next chapter of the research.

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[90] Rocha A. Sampaio R. (2023). Climate change before the European and Inter-American Courts of Human Rights: Comparing possible avenues before human rights bodies. *Review of European, Comparative & International Environmental Law*, 32(2). P. 288.

[91] ITLOS. *On the Request submitted to the Tribunal by the Commission of Small Island States on Climate Change and International Law.* Advisory Opinion of 21 May 2024.

[92] Ibid. § 66.

[93] ICJ. *Request for advisory opinion on obligations of states in respect of climate change transmitted to the Court pursuant to General Assembly resolution 77/276 of 29 March 2023*. URL: https://www.icj-cij.org/case/187 (accessed: 18.01.2025).

[94] Sub-question of the second question concerns human rights: "Peoples and individuals of the present and future generations affected by the adverse effects of climate change?".

[95] IACtHR. *Request for an advisory opinion on the scope of the state obligations for responding to the climate emergency transmitted from the Republic of Colombia and the Republic of Chile of 9 January*. URL: https://climatecasechart.com/wp-content/uploads/non-uscasedocuments/2023/20230109_18528_petition-2.pdf (accessed: 18.01.2025).

To summarize, the issue of climate change has been addressed in the work of almost all international judicial bodies. In terms of the genesis of international jurisprudence on climate change, three main stages can be distinguished: **i)** a nascent stage, in which certain attempts were made to challenge the actions of the States in the field of climate change (e.g., the *Inuit* petition of 2005 and the *Athabaskan Council* petition of 2013 before the IACHR, *Armando Ferrão Carvalho and Others v. European Parliament and Council* before the ECJ); **ii)** a contentious stage, which concerns the climate change disputes between individuals and governments (e.g., *Teitiota v. New Zealand* and *Billy and others v. Australia* before the HR Committee, *KlimaSeniorinnen v. Switzerland* before the ECtHR); **iii)** a phase of advisory proceedings dedicated to climate change (e.g., the ITLOS advisory opinion, as well as forthcoming advisory opinions of the ICJ and the IACtHR). Thus, the climate agenda first appeared in international judicial and quasi-judicial human rights bodies, and then moved to other international tribunals, such as the ICJ and the ITLOS.

2.2 Protecting human rights from climate change at the national level: a review of national jurisprudence

Before moving to the international level, the climate agenda was being considered by domestic courts. The most famous case at the national level is *Urgenda Foundation v. The State of the Netherlands*, in which The Hague District Court ruled that the State must limit the joint volume of Dutch annual greenhouse gas emissions, or have them limited, so that by the end of 2020 this volume will be reduced by at least 25% compared to the level of the year 1990.[96] M. Fermeglia and R. Luporini have highlighted that the use of human rights arguments in climate change litigation has increased significantly as a result of the *Urgenda* case.[97] E.P. Ermakova points outs

[96] *Urgenda Foundation v. The State of the Netherlands*. (2015). The Hague District Court. Case №C/09/456689 / HA ZA 13-1396. Decision of 24 June 2015. § 5.1.
[97] Fermeglia M. Luporini, R. *Op.cit*. P. 247.

that the applicants rely on constitutional and human rights laws in their attempts to hold the State responsible in climate change litigation.[98]

Domestic cases on climate change can be distinguished based on the judicial approaches: **i)** direct application of the climate change treaties (the UNFCCC, the Kyoto Protocol, and the Paris Agreement) in conjunction with the ECHR; **ii)** application of the climate change treaties only; **iii)** application of the Constitution and national laws on climate change.

In Europe, domestic courts are accustomed to applying the climate change treaties and the ECHR directly. The most successful examples or strategic cases are *Urgenda Foundation v. The State of the Netherlands*[99], *VZF Klimaatzaak v. Kingdom of Belgium*[100], and *Notre Affaire à Tous and Others v. France*[101]. Another example is *Neubauer et al. v. Germany*, in which the Federal Constitutional Court recognised that parts of Germany's Federal Climate Protection Act ('Bundesklimaschutzgesetz') are incompatible with fundamental rights for failing to set sufficient provisions for emission cuts beyond 2030.[102] Subsequently, based on the case of *Neubauer et al. v. Germany*, numerous lawsuits against federal lands were filed with the Federal Constitutional Court.[103] However, the First Senate of the Federal Constitutional Court did not admit them for adjudication based on a lack of adequate prospects. There was also an attempt to held responsible for inaction in addressing the climate change issue

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[98] Ермакова Е.П. *Указ соч.* С. 621.

[99] *The State of the Netherlands v. Urgenda Foundation.* (2020). Supreme Court of the Netherlands. Case №19/00135. Judgment of 13 January 2020.

[100] *VZW Klimaatzaak v Kingdom of Belgium & Others.* (2023). 6 Court of Appeal, Brussels. Case № 2021/AR/15gs, 2022/AR/737, 2022/AR/891. Judgment of 30 November 2023.

[101] *Notre Affaire à Tous and Others v. France*. (2021). Administrative Court of Paris. Case № 1904967, 1904968, 1904972, 1904976/4-1 Judgment of 3 February 2021.

[102] *Neubauer et al. v. Germany*. (2021). First Senate of Federal Constitutional Court of Germany, Cases 1 BvR 2656/18, 1 BvR 78/20, 1 BvR 96/20, 1 BvR 288/20. Decision of 24 March 2021. § 266.

[103] See *Frank v. State of Saarland* (2021). Federal Constitutional Court, Order of 9 September 2021; *Hochstadt v. State of Hessen* (2021). Federal Constitutional Court, Order of 9 September 2021; *Kiehm v. Brandenburg* (2021). Federal Constitutional Court, Order of 13 September 2021; *Krüssman v. Nordrhein-Westfalen* (2022). Federal Constitutional Court, Order of 18 January 2022; *Lemme v. State of Bayern* (2021). Federal Constitutional Court, Order of 30 June 2021; *Runge v. State of Sachsen* (2021). Federal Constitutional Court, Order of 9 September 2021; *Salis v. State of Sachsen-Anhalt* (2021). Federal Constitutional Court, Order of 9 September 2021.

in the Czech Republic. In case of *Klimatická žaloba ČR v. Czech Republic*, the Prague Municipal Court concluded that "the defendants would no longer be inactive" and ordered the State to "take the legally prescribed actions on the required content".[104] However, the Supreme Administrative Court overturned the decision of the Municipal Court and remitted the application for further consideration by the lower court.[105] On October 25, 2023, the lower court dismissed the case.[106]

The courts of States, which are not members of the Council of Europe, still apply the climate change treaties in courts proceedings. For instance, in case of *Mathur v. Ontario*, the Court of Appeal concluded referred to the Canada's commitments under the Paris Agreement.[107] The national courts of Australia[108], Ecuador[109], Nepal[110], New Zealand[111], the Republic of Korea[112] also referred to the UNFCCC and the Paris Agreement in their decisions or opinions.

In other countries, national courts have applied the relevant constitutional provisions, as well as municipal laws on climate change. Most of such climate change cases were handled in the United States.[113] As A. Solntsev points out, in the USA, there have been more than a thousand judicial decisions in the field of climate change.[114] By

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[104] *Klimatická žaloba ČR v. Czech Republic*. (2022). Prague Municipal Court. Case №14A 101/2021. Judgment of 15 June 2022. § 334.

[105] *Klimatická žaloba ČR v. Czech Republic*. (2023). Supreme Administrative Court. Case № 9 As 116/2022-166. Judgment of 2 February 2023.

[106] Klimatická žaloba ČR v. Czech Republic. URL: https://climatecasechart.com/non-us-case/klimaticka-zaloba-cr-v-czech-republic/ (accessed: 18.01.2025).

[107] *Mathur v. Ontario* (2024). Ontario Court of Appeal. ONCA 762. Decision of 17 October 2024. § 10.

[108] *Sharma and Others v. Minister for the Environment* (2021). Federal Court of Australia. VID 607 of 2020. Judgment of 21 May 2021.

[109] *Herrera Carrion et al. v. Ministry of the Environment et al*. (2021). Provincial Court of Justice of Sucumbío. Case №21201202000170. Judgment of 29 July 2021.

[110] *Shrestha v. Office of the Prime Minister et al.* (2018). Supreme Court of Nepal. Case № 074-WO-0283. Order of 25 December 2018.

[111] *Hauraki Coromandel Climate Action Incorporated v. Thames-Coromandel District Council.* (2020). High Court of New Zealand. Case №CIV-2019-419-173. Judgment of 8 December 2020.

[112] Opinion of the National Human Rights Commission on the Constitutional Complaints on Constitutionality of Carbon Neutrality Act. The National Human Rights Commission of the Republic of Korea. Opinion of 23 August 2023.

[113] U.S. Climate Change Litigation. URL: https://climatecasechart.com/ us-climate-change-litigation/ (accessed: 18.01.2025).

[114] Солнцев А.М. (2024). *Указ соч.* С. 154.

way of illustration, in the *Massachusetts v. EPA* case, the Supreme Court of the United States recognised that greenhouse gases are treated as air pollutants under the Clean Air Act.[115] In another case, *Rikki Held et al. v. State of Montana* case, the District court recognised that the fundamental constitutional right to a clean and healthful environment includes climate as part of the environmental life support system.[116] The national jurisprudence of the US courts reveals a specific approach to combating climate change — where the legal reasoning is mostly based on domestic legislation. It is also due to the fact that the US is eager to withdraw from the Paris Agreement.[117] The similar approach was applied by domestic courts in Brazil[118], Columbia[119], India[120], Mexico[121], and Pakistan[122].

Although there are climate change cases with a positive outcome, in most cases domestic courts refused to consider the merits of the case.[123] In several cases, the courts refused to assess constitutionality of the climate change acts or mitigation plans.[124]

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[115] *Massachusetts v. EPA* (2007). United States of America Supreme Court, No. 05–1120. 549 U.S. 497 (2007). Opinion of 2 April 2007. P. 27.

[116] *Rikki Held et al. v. State of Montana* (2023). Montana first judicial district court, No. CDV-2020-307. Order of 14 August 2023. § 7.

[117] Trump signs order to withdraw US from Paris climate agreement for second time. The Guardian. URL: https://www.theguardian.com/us-news/2025/jan/20/trump-executive-order-paris-climate-agreement (accessed: 07.03.2025).

[118] *Rede Sustentabilidade vs. National Environment Council*. (2021). Supreme Court of Brazil. Case № ADPF 749 / DF. Judgment of 14 December 2021*; PSB et al. v. Brazil (on Climate Fund)*. (2022). Supreme Court of Brazil. ADPF 708. Decision of 30 June 2022.

[119]*Center for Social Justice Studies et al. v. Presidency of the Republic et al.* (2016). Constitutional Court of the Republic of Colombia. Case № T-622/16. Decision of November 10 2016.

[120] *Sher Singh vs State Of Hp*. (2014). National Green Tribunal. Case №CWPIL No.15 of 2010. Opinion of 6 February 2014.

[121] *Greenpeace Mexico v. Ministry of Energy and Others*. (2020). Mexico City's Second District Administrative Court. Case № 104/2020. Judgment of 17 November 2020.

[122] *Leghari v. Federation of Pakistan*. (2015). Lahore High Court. Case №W.P. No. 25501/2015. Order of 4 September 2015.

[123] See, e.g., *Finnish Association for Nature Conservation and Greenpeace v. Finland.* Supreme Administrative Court. Case №3354/2022. Judgment of 7 June 2023; *Women from Huasco and Others v. the Government of Chile, Ministry of Energy, Environment and Health.* (2023). Supreme Court of Chile. Decision of 20 January 2023; *Plan B Earth and Others v. The Secretary of State for Business, Energy, and Industrial Strategy*. (2018). High Court of Justice. Case №CO/16/2018/. Order of 14 February 2018; *Family Farmers and Greenpeace Germany v. Germany*.(2019). Administrative Court of Berlin. Case №VG 10 K 412.18. Judgment of 31 October 2019.

[124] See, e.g., *In re Federal Climate Protection Act Austria.* The Austrian Constitutional Court. Case № G 139/2021-11. Decision of 27 June 2023; *Friends of the Irish Environment CLG v. Ireland*

While in others, they emphasised that judicial review of State's actions with regard to climate change is contrary to the separation of powers principle.[125] A climate lawsuit has been filed with the Supreme Court even in the Russian Federation.[126] As Solntsev A. and Otrazhevskaya A. note, it was the first lawsuit in Russia related to climate change policy.[127] Administrative claimants were two non-governmental organisations — Ekozashita (Eco-defence) and the Moscow Helsinki Group, as well as 18 individuals. They demanded that emissions in Russia must be reduced by 31% from 1990 levels by 2030, and not exceed 5% by 2050. So the claimants requested the Supreme Court to invalidate subparagraph 'a' of Decree of the President of the Russian Federation No. 666 dated November 4, 2020 "On Reducing Greenhouse Gas Emissions" and an annex to the Strategy for Socio-Economic Development of the Russian Federation with Low Greenhouse Gas Emissions until 2050. Referring to the principle of separation of powers, the Court stressed that, according to the rules of administrative procedure, it is not entitled to impose on public authorities the obligation to implement legal regulation at the request of citizens and other interested parties, and dismissed the complaint[128].

As an intermediate conclusion, it should be emphasised that, firstly, there are three main stages in the genesis of international jurisprudence on climate change, including a nascent , a contentious, and advisory proceedings; secondly, the main approaches used by domestic courts in climate change litigation can be distinguished: application of the climate change treaties in conjunction with the ECHR, application

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(2019). High Court of Ireland. IEHC 454. Judgment of 19 September 2019. §145; Greenpeace Nordic Ass'n v. Ministry of Petroleum and Energy. Supreme Court of Norway. Case №HR-2020-2472-P. Judgment of 22 December 2022. § 176;

[125] *A Sud et al v Italy*. (2024). Civil Court of Rome. Case № 39415. Judgment of 26 February 2024; *Thomson v. Minister for Climate Change Issues*. (2017). High Court of New Zealand. Case № 2015-485-919. Judgment of 11 February 2017; *Mexican Center for Environmental Law (CEMDA) v. Mexico*. (2023). Mexico Supreme Court. Case №361/2022. Decision of 12 April 2023.

[126] Определение Верховного Суда Российской Федерации от 21 сентября 2022 г. № АКПП-22-879. URL: https://www.conventions.ru/case/229932/ (accessed: 18.01.2025).

[127] Солнцев А., Отрашевская А. (2024). *Указ соч.* С. 5.

[128] Определение Верховного Суда Российской Федерации от 21 сентября 2022 г. № АКПП-22-879. URL: https://www.conventions.ru/case/229932/ (accessed: 18.01.2025).

of the climate change treaties alone, application of the Constitution and national legislation on climate change; thirdly, at the international level, States are responsible for violations of their international obligations (*Billy and others v. Australia*, *KlimaSeniorinnen v. Switzerland*), whereas they bear a tort liability at the national level (*Urgenda Foundation v. The State of the Netherlands*, *VZF Klimaatzaak v. Kingdom of Belgium*, *Notre Affaire à Tous and Others v. France)*.

Chapter conclusions: firstly, the preamble of the Paris Agreement reflects a human rights protecting function in the fight against climate change; secondly, there are three main stages in the genesis of international jurisprudence on climate change, including a nascent, a contentious, and advisory proceedings; thirdly, there are three main approaches used by domestic courts in climate change litigation: application of the climate change treaties in conjunction with the ECHR, application of the climate change treaties alone, application of the Constitution and national legislation on climate change.

II. THE ROLE OF INTERNATIONAL HUMAN RIGHTS LAW IN ADDRESSING CLIMATE CHANGE

The second chapter is devoted to the analysis of the role of international human rights obligations of States in the context of climate change. The chapter aims to identify potential and limitations of the existing international legal norms in the sphere of international human rights law in addressing the climate change problem. The chapter also examines the phenomenon of "climate" refugees and the right to a clean, healthy and sustainable environment through the lens of the existing international law.

§ 1. International human rights obligations of States in the context of climate change

The sources of international human rights law are divided into universal and regional instruments. On 10 December of 1948, the Universal Declaration of Human Rights (hereinafter – **UDHR**) was adopted, thus enshrining human rights for the first time.[129] Subsequently, two Covenants (**ICCPR** and **ICESCR**) were adopted in 1966. Collectively, these international instruments, along with the Optional Protocols, constitute the International Bill of Human Rights.[130] The UDHR is not legally binding *stricto sensu*. However, in his separate opinion in the *Namibia* case, Judge Ammoun emphasised that the affirmations of the UNDR "can bind States on the basis of custom within the meaning of paragraph 1 (b) of the same Article, whether because they constituted a codification of customary law… or because they have acquired the force of custom through a general practice accepted as law".[131] As an example, he referred to the right to equality.[132] There are a lot of States which have not signed and/or ratified

[129] UN GA Resolution A/RES/217-A(III) of 10 December 1948 "*Universal Declaration of Human Rights*". URL: http://www.un-documents.net/a3r217a.htm (accessed: 18.01.2025).
[130] OHCHR, The International Bill of Rights Fact Sheet 2, Rev 1. URL: https://www.refworld.org/reference/themreport/ohchr/1996/en/53051 (accessed: 18.01.2025).
[131] ICJ. Separate Opinion of Judge Ammoun. P. 64. *Legal Consequences for States of the Continued Presence of South Africa in Namibia (South West Africa) notwithstanding Security Council Resolution 276 (1970)*. Advisory Opinion of 21 June 1971.
[132] Ibid.

the ICCPR or ICESCR, the UDHR may be the only applicable international human rights instrument in such cases.[133]

The ICCPR and the ICESCR are universal human rights treaties to which most States are parties (174[134] and 172[135], respectively). More States participate only in special human rights conventions, including the Convention on the Rights of the Child (196 parties)[136], the Convention on the Rights of Persons with Disabilities (192 parties)[137], the Convention on the Elimination of All Forms of Discrimination against Women (189 parties)[138], the International Convention on the Elimination of All Forms of Racial Discrimination (182).[139]

Although the ICCPR and ICESCR are recognised as universal human rights treaties, the question of the universality still arises. To illustrate, Malaysia, Singapore, the United Arab Emirates are not parties to either the ICCPR or the ICESCR, while China is not party to the ICCPR and the United States of America is not party to the ICESCR. Furthermore, a group of small islands that are particularly vulnerable to the adverse effects of climate change are not parties to either the ICCPR or the ICESCR.[140]

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[133] Rhona K. M. Smith. (2014). Textbook on International Human Rights (6th edn). Oxford: Oxford University Press. P. 74.

[134] The International Covenant on Civil and Political Rights. UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV4&chapter=4&clang=_en (accessed: 18.01.2025).

[135] The International Covenant on Economic, Social and Cultural Rights. UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV3&chapter=4&clang=_en (accessed: 18.01.2025).

[136] The Convention on the Rights of the Child. UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV11&chapter=4&clang=_en (accessed: 18.01.2025).

[137] The Convention on the Rights of Persons with Disabilities. UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV-15&chapter=4&clang=_en (accessed: 18.01.2025).

[138] The Convention on the Elimination of All Forms of Discrimination against Women. UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV-8&chapter=4&clang=_en (accessed: 18.01.2025).

[139] The International Convention on the Elimination of All Forms of Racial Discrimination. UN Treaty Collection. URL: https://treaties.un.org/Pages/ViewDetails.aspx?src=TREATY&mtdsg_no=IV-2&chapter=4&clang=_en (accessed: 18.01.2025).

[140] See, e.g., Comoros, Cook Islands, Kiribati, Micronesia, Nauru, Niue, Palau, St. Kitts and Nevis, St. Lucia, Solomon Islands, Tuvalu, and Vanuatu.

As J. Kowalski notes, there are currently four regional human rights systems: i) the European system of human rights protection; ii) the Inter-American system of human rights protection; iii) the African system of human rights protection; iv) the Arab system of human rights protection.[141]

On a global level, States have an obligation under international law to fulfil, respect and protect human rights. According to the position of the Office of the High Commissioner for Human Rights (hereinafter – **OHCHR**), the obligation to respect means that States must refrain from interfering with or curtailing the enjoyment of human rights; the obligation to protect requires States to protect individuals and groups against human rights abuses; the obligation to fulfil refers to positive measure that States must take to facilitate the enjoyment of basic human rights.[142] These obligations can be divided into two types: negative (obligation to "respect") and positive (obligations to "protect" and "fulfill").[143]

In its resolution №53/6 of 12 July 2023, the UN HRC emphasised that the of climate change adversely impacts on the enjoinment of human rights, including, *inter alia*, "the right to life, the right to adequate food, the right to the enjoyment of the highest attainable standard of physical and mental health, the right to adequate housing, the right to self-determination, the rights to safe drinking water and sanitation, the right to work and the right to development…".[144] As the jurisprudence of international and national courts has establihed, the right to life and the right to respect for private and family life are most affected by negative effects of climate change.[145]

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[141] Kowalski, J. (2024). Measuring the Effectiveness of Control Mechanisms in Regional Human Rights Systems – from Conception to Execution. *Przegląd Prawno-Ekonomiczny*, 2(2). P. 56.

[142] International Human Rights Law. URL: https://waps.ohchr.org/en/instruments-and-mechanisms/international-human-rights-law (accessed: 08.04.2025).

[143] Kälin, W., & Künzli, J. (2019). The Law of International Human Rights Protection (2d ed.). Oxford: Oxford University Press. P. 87.

[144] UN HRC Resolution 53/6 of 12 July 2023 "*Human rights and climate change*". URL: https://digitallibrary.un.org/record/4019651?v=pdf (accessed: 18.01.2025).

[145] See, e.g., *The State of the Netherlands v. Urgenda Foundation*. (2020). Supreme Court of the Netherlands. Case №19/00135. Judgment of 13 January 2020. § 5.6.2; *VZW Klimaatzaak v Kingdom of Belgium & Others*. (2021). Court of First Instance of Brussels. Case №2015/4585/A. Judgment of 17 June 2021. P. 62; *KlimaSeniorinnen v. Switzerland*. § 573; *Billy and others v. Australia*. §§ 8.12, 8.14.

Article 6 of the ICCPR stipulates the inherent right to life, which shall be protected by law.[146] According to the General comment No. 36, States are obliged to respect the right to life, which entails the duty to refrain from engaging in conduct resulting in arbitrary deprivation of life.[147] In addition, States have a duty to protect life by establishing a legal framework to ensure the full enjoyment of the right to life by all individuals.[148] Besides, the right to life is of customary nature.[149] While Article 17 of the ICCPR enshrines the right to privacy, stating that "no one shall be subjected to arbitrary or unlawful interference with his privacy, family, or correspondence, nor to unlawful attacks on his honour and reputation".[150] However, these 'classical rights' cannot explicitly be applied to the climate change realm. The way to overcome this obstacle is an evolutionary interoperation.

There are two types of treaty interpretation, such as static and evolutionary. The former ascribes to the legal text the normative meaning that it had at the time of its adoption, while the latter contemplates that the text should be interpreted so as to correspond to the normative meaning at the moment of interpretation.[151] The evolutionary method of interpretation is widely employed in jurisprudence of international courts. It was first applied in the *Tyrer v. the United Kingdom* case, where the ECtHR held that "the Convention is a living instrument which… must be interpreted in the light of present-day conditions".[152] Then, in the case of *Christine*

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[146] International Covenant on Civil and Political Rights (adopted on 16 December 1966, and entered into force on 23 March 1976).

[147] CCRP. General Comment No. 36. § 7. URL: https://www.refworld.org/legal/general/hrc/2019/en/123145 (accessed: 08.04.2025).

[148] Ibid. § 18.

[149] See, e.g., CCPR. General Comment No. 29. § 11. URL: https://www.refworld.org/legal/general/hrc/2001/en/30676 (accessed:08.04.2025); ICTY. *Prosecutor v. Blaškić*. IT-94/14-A. Judgment of 29 July 2004. §143; ICTY. *Prosecutor v. Kordić and Čerkez*. IT-95-14/2-A. Judgment of 17 December 2004. § 106; ACtHPR. *Ally Rajabu et al. v. Tanzania*. No. 007/2019. Judgment of 28 November 2019. § 113; IACHR. *Victims of the Tugboat "13 de Marzo" v. Cuba*. Case 11.436. Report 47/96. Decision of 16 October 1996. § 79.

[150] International Covenant on Civil and Political Rights (adopted on 16 December 1966, and entered into force on 23 March 1976).

[151] Spaic B. (2023). Evolutionary and Static Interpretation // Research Handbook on Legal Evolution / ed. by W. Załuski. Edward Elgar Publishing. P. 4.

[152] ECtHR. *Tyrer v. the United Kingdom*. Application no. 5856/72. Judgment of 25 April 1978. § 31.

Goodwin v. the United Kingdom, the Court clarified the concept of such "present-day conditions" for the appropriate interpretation and application of the ECHR.[153] The method of evolutionary interpretation has also been reflected in jurisprudence of the ICJ. By way of illustration, in the *Costa Rica v. Nicaragua* case, the ICJ formulated a general rule as to when a treaty has an evolving meaning: (i) if the parties used "generic terms" when they were aware that the meaning of these terms was likely to change over time; (ii) if the treaty has been entered into for a very long period or is "of continuing duration".[154]

In the *Gabčikovo-Nagymaros Project* case, the ICJ referred to the "great significance that it attaches to respect for the environment, not only for States but also for the whole of mankind".[155] The 'greening' of human rights then had an impact on international human rights bodies. According to the position of the IACtHR, environmental degradation and the adverse effects of climate change affect the real enjoyment of human rights.[156] The HR Committee in its General Comment highlighted that "[e]nvironmental degradation, climate change and unsustainable development constitute some of the most pressing and serious threats to the ability of present and future generations to enjoy the right to life".[157] Hence, the implementation of the obligation of States parties to respect and ensure the right to life depends, *inter alia*, on measures taken by States parties to preserve the environment and protect it against harm, pollution and climate change caused by public and private actors.[158] The HR Committee has repeatedly stated that the protection of the right to life requires States

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[153] ECtHR. *Christine Goodwin v. the United Kingdom*. Application no. 28957/95. Judgment of 11 July 2002. § 84.
[154] ICJ. *Dispute regarding Navigational and Related Rights* (*Costa Rica v. Nicaragua*). Judgment of 13 July 2009. § 66.
[155] ICJ. *Case concerning the Gabčikovo-Nagymaros Project (Hungary v. Slovakia)*. Judgment of 25 September 1997. § 53.
[156] IACtHR. *Case of Kawas Fernández v. Honduras*. Judgment of 3 April 2009. § 148.
[157] CCPR. General Comment No. 36. § 62. URL: https://www.refworld.org/legal/general/hrc/2019/en/123145 (accessed: 08.04.2025).
[158] Ibid.

parties to adopt positive measures.[159] The right to life also implies the right of individuals to enjoy a life with dignity and to be free from acts or omissions that would cause their unnatural or premature death.[160] Despite the fact that the right to life includes protection from the adverse effects of climate change, the HR Committee has not found violations of this right in climate change cases.[161]

With regard to the right to life, the ECtHR has held that States have positive obligations to protect this right in the context of dangerous activities, including industrial or environmental disasters.[162] Recently, the Court has clarified that Article 2 of the Convention will be applied to action and/or inaction in the context of climate change, if it's proven that there is a "real and imminent" risk to life, meaning serious, genuine and sufficiently ascertainable threat to the life of a specific applicant, containing an element of material and temporal proximity of the threat to the harm impugned by the applicant.[163] The ECtHR thus has established a new test for recognising violation of the right to life because of State's action or omission in the fight against climate change. In *KlimaSeniorinnen v. Switzerland*, the Court has found it unnecessary to analyse the issues pertinent to the threshold of applicability of Article 2.[164]

Regarding the right to respect for private and family life, in *Hatton and Others v. the United Kingdom*, the ECtHR stressed that "there is no explicit right in the Convention to a clean and quiet environment, but where an individual is directly and

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[159] See, e.g., *Teitiota v. New Zealand*, § 9.4; *Billy v. Australia*. § 8.3; UN HRC. *Toussaint v. Canada*. Views. Communication no. 2348/2014. Decision of 24 July 2018. § 11.3.
[160] UN HRC. *Cáceres et al. v. Paraguay*. Views. Communication no. 2751/2016. Decision of 20 September 2019. § 7.3.
[161] See, e.g., *Billy v. Australia*. § 8.8; *Teitiota v. New Zealand.* § 10.
[162] See, e.g., ECtHR. *Öneryildiz v. Turkey*. Application no. 48939/99. Judgment of 30 November 2004. §§ 98–101; ECtHR. *Budayeva and Others v. Russia*. Application no. 15339/02. Judgment of 20 March 2008. §§ 147–158; ECtHR. *Kolyadenko and Others v. Russia*. Applications nos. 60908/11, 62110/11, 62129/11, 62312/11 and 62338/11. Judgment of 24 July 2014. § 101; ECtHR. *Erdal Muhammet Arslan and Others v. Türkiye*. Application no. 42749/19. Judgment of 21 November 2023. § 128.
[163] *KlimaSeniorinnen v. Switzerland*. § 513.
[164] Ibid. § 536.

seriously affected by noise or other pollution, an issue may arise under Article 8".[165] Then, in case of *Jugheli and Others v. Georgia*, the Court clarified that "the adverse effects of the environmental pollution must attain a certain minimum level if they are to fall within the scope of Article 8".[166] In *Tàtar v. Romania*, the ECHR stated that "the existence of a serious and substantial risk to the applicants' health and well-being placed a positive obligation on the State to adopt reasonable and adequate measures capable of protecting the rights of the persons concerned to respect for their private life and home and, more generally, to the enjoyment of a healthy and protected environment".[167] The Court considered various cases in which the quality of the human environment was questioned, based on the fact that unsafe or destructive environmental conditions could negatively affect human well-being.[168] In recent *KlimaSeniorinnen v. Switzerland* case, the ECtHR noted that the Convention did not guarantee the right to a healthy environment, however, the 'living-instrument doctrine' did not allow the Convention to be interpreted in a way that undermined the basic principles of the system.[169] In this case, the Court emphasised that Article 8 implies "a right for individuals to enjoy effective protection by the State authorities from serious adverse effects on their life, health, well-being and quality of life arising from the harmful effects and risks caused by climate change".[170] Nevertheless, the ECtHR has set a precedent that only allows associations to file lawsuits on climate change.

To summarize, firstly, positive obligations of States in the field of human rights (obligations to "protect" and "fulfil") are applicable to climate change realm; secondly, "classical" human rights do not explicitly imply States' obligations to combat climate

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[165] ECtHR. *Hatton and Others v. the United Kingdom.* [GC] Application no. 36022/97. Judgment of 8 July 2003. § 96.
[166] ECtHR. *Jugheli and Others v. Georgia.* Application. no. 38342/05. Judgment of 13 July 2017. § 62.
[167] ECtHR. *Tàtar v. Romania.* Application no. 67021/01. Judgment of 27 January 2009. §107.
[168] See, e.g., ECtHR. *Fadeyeva v. Russia*. Application no. 55723/00. Judgment of 9 June 2005. §§ 68-69; ECtHR. *Cordella and Others v. Italy*. Applications nos. 54414/13 and 54264/15. Judgment of 24 January 2019. §§ 157-160; ECtHR. *Çiçek and Others v. Turkey*. Application no. 44837/072020. Decision of 4 February 2020. §§ 22-29.
[169] *KlimaSeniorinnen v. Switzerland*. § 355.
[170] Ibid. § 519.

change, however, using the evolutionary method of treaty interpretation, they can encompass protection from the adverse impacts of climate change (e.g., the right to life and the right to respect for private and family life); thirdly, as the jurisprudence of international and national courts shows, the relevant provisions of international human rights treaties may be applied with certain limitations.

§ 2. "Greening" international human rights law: the rights of "climate refugees" and the right to a clean, healthy and sustainable environment

2.1 The international legal protection of "climate refugees"

In its Synthesis Report, the IPCC highlights that "climate and weather extremes are increasingly driving displacement in Africa, Asia, North America (*high confidence*), and Central and South America (*medium confidence*), with small island states in the Caribbean and South Pacific being disproportionately affected relative to their small population size (*high confidence*)".[171] Sea-level rise exacerbates not only the loss of habitable land, but also flooding, crop destruction, and saltwater encroachment, all of which contribute to displacement.[172] International Organization for Migration (IOM) defines "climate migration" as "the transfer of a person or groups of persons who, owing mainly to sudden or progressive changes in the environment due to the effects of climate change, are obliged or decide to leave their habitual place of residence whether temporarily or permanently, within a State or crossing an international border".[173] So "climate migration" is a type of forced migration.

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[171] 2023 Synthesis Report: A Report of the Intergovernmental Panel on Climate Change. URL:https://www.ipcc.ch/report/ar6/syr/downloads/report/IPCC_AR6_SYR_FullVolume.pdf (accessed: 18.01.2025).

[172] Roberts, H. (2024). 'Climate change and the legal implications of rising sea levels on low-lying states'. *Living with Climate Change*. P. 359.

[173] Glossary on Migration, 2019. URL: https://www.onlinelibrary.iihl.org/wp-content/uploads/2020/05/2019-IOM-Glossary-on-Migration.pdf (accessed: 18.01.2025).

The issue of climate migration is highly debatable in doctrine. Some authors prefer to describe people displaced because of climate change as "climate" refugees.[174] Others suppose that the concept of "climate" refugees is incorrect.[175] In this regard, it is proposed to consider climate migrants as a separate category.[176] Some authors believe that it is preferable to use the term "climate migrants".[177] In addition, it is proposed to use the notion "ecological displacement" as an alternative.[178]

Under the Convention Relating to the Status of Refugees (hereinafter – **Refugee Convention**), the term 'refugees' means those who have a "well-founded fear of persecution based on race, religion, nationality or membership of a particular social group or political opinion".[179] The Refugee Convention explicitly does not mention sea-level rise as a ground for granting refugee status. That said, regional refugee law instruments take a broader view of displacement resulting from disasters and climate change.[180] However, out of them only African Union Convention for the protection and

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[174] See, e.g., Essam El-Hinnawi, Environmental refugees. United Nations Environment Programme, 1985. URL: https://digitallibrary.un.org/record/121267 (accessed: 18.01.2025); Renaud, F., Bogardi, J. J., Dun, O., Warner, K. (2007). Control, Adapt or Flee How to Face Environmental Migration? United Nations University. Institute for Environmental and Human Security. https://collections.unu.edu/eserv/UNU:1859/pdf3973.pdf (accessed: 18.01.2025); Neuteleers, S. (2011). Environmental Refugees: A Misleading Notion for a Genuine Problem. *Ethical Perspectives*, 18(2), 229–248; Bonnie, D., Tyler, G. (2009). Confronting a rising tide: A proposal for a convention on Climate change refugees. *The Harvard environmental law review*: HELR. 33, 349–403; Berchin, I.I., Valduga, I.B., Garcia, J., & de Andrade Guerra, J.B.S.O. (2017). Climate change and forced migrations: An effort towards recognizing climate refugees. *Geoforum*, 84, 147–150.

[175] McAdam, J. (2009). 'From Economic Refugees to Climate Refugees?'. *Melbourne Journal of International Law*, 10(2), 579.

[176] McAdam, J. (2010). El desplazamiento provocado por el Cambio Climático y el Derecho Internacional. URL: https://www.acnur.org/fileadmin/Documentos/BDL/2011/7460.pdf (accessed: 18.01.2025).

[177] Hedegaard, T.F. (2023). Climate Migrants or Climate Refugees? Danes' Attitudes to Whether Climate Migrants Should Have the Right to Apply for Asylum. URL: https://doi.org/10.21203/rs.3.rs-2443001/v1 (accessed: 18.01.2025).

[178] Hiraide, L.A. (2023). Climate refugees: A useful concept? Towards an alternative vocabulary of ecological displacement. *Politics*, 43(2), 267–282.

[179] Convention Relating to the Status of Refugees (adopted on 28 July 1951, and entered into force on 22 April 1954).

[180] See, e.g., Cartagena Declaration on Refugees, Colloquium on the International Protection of Refugees in Central America, Mexico and Panama (adopted on 22 November 1984); Brazil Declaration, A Framework for Cooperation and Regional Solidarity to Strengthen the International Protection of Refugees, Displaced and Stateless Persons in Latin America and the Caribbean (adopted on 3 December 2014); African Union Convention for the protection and assistance of internally

assistance of internally displaced persons in Africa is legally binding. The International Law Commission (hereinafter – **ILC**) confirmed that "there was no legal framework that provided for a distinct legal status of persons affected by sea-level rise and that existing applicable frameworks were highly fragmented".[181] The ILC concludes that it is "unnecessary to develop a highly specific legal framework for the protection of the narrow group of persons affected by sea-level rise".

In *Teitiota v. New Zealand*, the HR Committee, for the first time, interpreted the right to life in the context of climate change. Besides, it is a single case at the international level, which addressees the issue of "climate" refugees. The HR Committee emphasised that there is a high threshold for providing substantial grounds to establish that a real risk of irreparable harm exists.[182] According to the General Comment No. 36, States parties must allow all asylum seekers claiming a real risk of a violation of their right to life in the State of origin access to refugee or other individualized or group status determination procedures that could offer them protection against *refoulement*.[183] As Solntsev A. notes, "obligations to cooperate in countering the detrimental effects of climate change are *erga omnes* in nature".[184] At the national level, in *I.L. v. Italian Ministry of the Interior and Attorney General*, the Supreme Court of Cassation confirmed that the cases of environmental disaster, of climate change and the unsustainable exploitation of natural resources may pose a real risk to the right to life and dignified existence and, therefore, constitute grounds for granting humanitarian protection.[185] Noticeably, the Court referred to *Teitiota case*.[186]

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displaced persons in Africa (adopted on 23 October 2009, and entered into force on 6 December 2012).

[181] ILC Report on Seventy-third session (n 270) 'Sea-level rise in relation to international law', p. 214.

[182] *Teitiota v. New Zealand.* § 9.3. See also UN HRC. *B.D.K. v. Canada*. Views. Communication no. 3041/2017. Decision of 29 April 2019. § 7.3; UN HRC. *K v. Denmark*. Views. Communication no. 2393/2014. Decision of 11 September 2015. § 7.3.

[183] CCPR. General Comment No. 36. § 31. URL: https://www.refworld.org/legal/general/hrc/2019/en/123145 (accessed: 08.04.2025).

[184] Солнцев А. (2020). *Указ соч.* С. 53.

[185] *I.L. v. Italian Ministry of the Interior and Attorney General*. (2021). Supreme Court of Cassation. N. 5022/2021. Ordinance of 24 February 2021.

[186] Ibid.

Finally, the Supreme Court of Cassation accepted the appeal of the applicant who was denied humanitarian protection.[187]

In the course of advisory proceedings before the ICJ, only three States addressed the issue of "climate" refugees in their written statements. The most proactive approach has been chosen by the Solomon Islands, which submitted that "climate refugees" should be afforded protection under the Refugee Convention, and that the principle of *non-refoulement* applies to those escaping environmentally hazardous States due to climate change effect".[188] Portugal points out that the adverse effects of sea-level rise may cause internal or cross-border displacement.[189] In this respect, Portugal allows that *non-refoulement* obligations, protection under international refugee Law, and guidelines from the 2018 Global Compact for Safe, Orderly and Regular Migration apply to persons affected by sea-level rise.[190] The Netherlands believes that standards under international human rights law are applicable to "climate change" refugees, including (i) minimum standards of treatment that States must afford to individuals within their territory or jurisdiction; (ii) a legal basis for individuals to seek protection in another State; and (iii) minimum standards of treatment which must be observed in the host State.[191] The issue of climate-change displaced persons should also be placed high on the international agenda.[192]

Nevertheless, the use of the term "climate migrants" seems to be the most appealing, as it does not trigger the application of the Refugee Convention (*lex lata*), but at the same time it defines a special category of persons displaced because of climate change. So States should continue to work on the development of protection tools for climate migrants at both the national and international levels (*lex ferenda*).

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[187] Ibid.
[188] Written Statement of Solomon Islands, § 227. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-30-00-en.pdf (accessed: 08.04.2025).
[189]Written Statement of Portugal, § 93. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240307-wri-01-00-en.pdf (accessed: 08.04.2025).
[190] Ibid.
[191] Written Statement of the Netherlands, § 5.43. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240321-wri-14-00-en.pdf (accessed: 08.04.2025).
[192] Ibid. § 5.44.

2.2 The legal status of the right to a clean, healthy and sustainable environment

On 18 October 2021, the UN HRC, for the first time, recognised the right to a clean, healthy and sustainable environment as "human right that is important for the enjoyment of human rights".[193] On 28 July 2022, the UN GA recognised the right to a clean, healthy and sustainable environment as a human right by 161 votes for, none against and 8 abstentions.[194] In its recent resolution 52/23 of 4 April 2023, the UN HRC called upon States Calls upon to respect, protect and fulfil human rights, including in all actions undertaken to address environmental challenges.[195]

The right to a healthy environment has been recognised in a number of regional human rights instruments. Article 24 of the African Charter on Human and Peoples' Rights (hereinafter – **ACHPR or African Charter**) explicitly provides for the right of peoples to a general satisfactory environment favorable to their development.[196] For example, in in *SERAC v. Nigeria*, the ACHPR clarified that this right "requires the state to take reasonable and other measures to prevent pollution and ecological degradation, to promote conservation, and to secure an ecologically sustainable development and use of natural resources".[197]

The right to a healthy environment is established expressly in Article 11 of the Protocol of San Salvador, an Additional Protocol to the American Convention on Human Rights.[198] Subsequently, the IACtHR declared this right as "a universal

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[193] UN HRC Resolution 48/13 of 18 October 2021 *"The human right to a clean, healthy and sustainable environment"*. URL: https://digitallibrary.un.org/record/3945636?v=pdf (accessed: 18.01.2025).

[194] UN GA Resolution A/RES/76/300 of 28 July 2022 *"The human right to a clean, healthy and sustainable environment"*. URL: https://digitallibrary.un.org/record/4010778?v=pdf (accessed: 18.01.2025).

[195] UN HRC Resolution 52/23 of 4 April 2023 *"The human right to a clean, healthy and sustainable environment".* URL: https://digitallibrary.un.org/record/4010778?v=pdf (accessed: 18.01.2025).

[196] The African Charter on Human and Peoples' Rights (adopted on 27 January 1981, and entered into force on 21 October 1986).

[197] ACHPR. *Social and Economic Rights Action Center (SERAC) and Center for Economic and Social Rights (CESR) v. Nigeria*. Communication no. 55/96. Decision of 27 October 2001. § 52.

[198] The Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights (Protocol of San Salvador) (adopted on 17 November 1988, and entered into force on 16 November 1999).

value…and fundamental right for the existence of humankind".[199] The Court underscored that "the right to a healthy environment is recognized explicitly in the domestic laws of several States of the region, as well as in some provisions of the international *corpus iuris*...".[200] The right to a healthy environment has been also included in the Aarhus Convention,[201] the Charter of Fundamental Rights of the European Union,[202] the Arab Charter on Human Rights,[203] the ASEAN Human Rights Declaration[204], and the Escazú Agreement.[205]

Nevertheless, the ICCPR and ICESCR and the ECHR explicitly do not enshrine the right to a healthy environment. [206] For its part, the CRC has recognised that "children have the right to a clean, healthy and sustainable environment" and it is implicit in the Convention and directly linked to certain rights.[207] According to the HR Committee, the right to a healthy environment consists of two elements: procedural and substantive. Procedural dimension of the right implies access to information, public participation, access to justice and public remedies, while the substantive element include clean air, a safe climate, access to safe water and adequate sanitation,

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[199] IACtHR. *Indigenous Communities of the Lhaka Honhat [Our Land] Association v. Argentina*. Judgment of 6 February 2020. § 203; IACtHR. *The Environment and Human Rights*, Advisory Opinion OC-23/17 of 15 November 2017. § 59.

[200] Ibid. § 55.

[201] The Convention on access to information, public participation in decision-making and access to justice in environmental matters (adopted on 25 June 1998, and entered into force on 30 October 2001).

[202] The Charter of Fundamental Rights of the European Union (adopted on 2 October 2000, and entered into force on 1 December 2009).

[203] The Arab Charter on Human Rights (adopted on 22 May 2004, and entered into force on November 2013).

[204] The ASEAN Human Rights Declaration (adopted on 18 November 2012).

[205] The Regional Agreement on Access to Information, Public Participation and Justice in Environmental Matters in Latin America and the Caribbean (adopted on 27 September 2018, and entered into force on 22 April 2021).

[206] See International Covenant on Civil and Political Rights (adopted on 16 December 1966, and entered into force on 23 March 1976); International Covenant on Economic, Social and Cultural Rights, (adopted on 16 December 1966, and entered into force on 3 January 1976); Convention for the Protection of Human Rights and Fundamental Freedoms (adopted on 4 November 1950, and entered into force on 3 September 1953).

[207] CRC. General Comment No. 26. § 63. URL: https://tbinternet.ohchr.org/_layouts/15/TreatyBodyExternal/TBSearch.aspx?Lang=en&TreatyID=5&DocTypeID=11 (accessed: 08.04.2025).

healthy and sustainably produced food, non-toxic environments in which to live, work, study and play, and healthy biodiversity and ecosystem.[208]

As Fitzmaurice M. points out, although the procedural dimension of the right to a healthy environment is less controversial at the global scale, it is still a developing area.[209] However, Lostal M. emphasised the illusory character of the recognition of the right to a healthy environment, since "it keeps everything in the same place".[210] While Spijkers O. notes that there are still differences regarding the legal status of the right to a clean, healthy, and sustainable environment: a new autonomous human right under customary international law or it merely calls for a 'green' interpretation of already existing human rights.[211] Some authors suppose that the use of the integrative approach for the full recognition of the right to a healthy environment may be optimal, as the conceptualization of the right to a healthy environment is possible through the efforts of a number of actors, mechanisms and processes, including human rights treaties, resolutions, declarations, judicial decisions from international, regional and state tribunals…".[212] In addition to exanimating existing international legal rules and doctrinal approaches, it should be clarified whether there is a rule of customary international law regarding the right to a clean, healthy and sustainable environment.

Generally, an international custom consists of two constituent elements: a State practice and an *opinio juris*.[213] State practice must be general, which means it must be

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[208] UN HRC. Right to a healthy environment: good practices. Report of the Special Rapporteur on the issue of human rights obligations relating to the enjoyment of a safe, clean, healthy and sustainable environment. URL: https://wedocs.unep.org/handle/20.500.11822/32450 (accessed: 08.04.2025).

[209] Fitzmaurice, M. (2024). Human Right to a Clean Environment: General Reflections. *International Community Law Review*, 26(4). P. 346.

[210] Lostal, M. (2024). One-dimensional law: A critique of the human right to a clean, healthy and sustainable environment. *The International Journal of Human Rights*. P. 18

[211] Spijkers, Otto: The Status of the Right to a Clean, Healthy and Sustainable Environment Under Customary International Law, *VerfBlog*, 2025/4/04. URL: https://verfassungsblog.de/ip-hr2he-customary-international-law/ (accessed: 08.04.2025).

[212] Damirli, M.A., Günsel, I.S., & Ishık, T. (2024). Human Right to a Clean, Healthy and Sustainable Environment: Towards Full Legal Recognition. *International Conference on Smart Environment and Green Technologies – ICSEGT2024*. P. 546.

[213] Draft conclusions on identification of customary international law, adopted by the International Law Commission at its seventieth session, in 2018, and submitted to the General Assembly as a part of the Commission's report covering the work of that session. Conclusion 2.

sufficiently widespread and representative, as well as consistent.[214] Forms of State practice are, *inter alia*, diplomatic acts and correspondence; conduct in connection with resolutions adopted by an international organization or at an intergovernmental conference; conduct in connection with treaties; executive conduct, including operational conduct "on the ground"; legislative and administrative acts; and decisions of national courts.[215] While forms of an *opinio juris* include, but are not limited to: public statements made on behalf of States; official publications; government legal opinions; diplomatic correspondence; decisions of national courts; treaty provisions; and conduct in connection with resolutions adopted by an international organization or at an intergovernmental conference.[216]

As the ICJ emphasised in *North Sea continental shelf* cases, " both extensive and virtually uniform in the sense of the provision invoked; and should moreover have occurred in such a way as to show a general recognition that a rule of law or legal obligation is involved".[217] Besides, in *Nuclear Weapons Advisory Opinion*, the ICJ noted that "General Assembly resolutions, even if they are not binding, may sometimes have normative value…they can, in certain circumstances, provide evidence important for establishing the existence of a rule or the emergence of an *opinio juris*".[218] In this regard, it is necessary to look at their content and the conditions of their adoption; and it is also necessary to see whether an *opinio juris* exists as to their normative character.[219]

As regards the right to a healthy environment, it was recognised by the UN GA resolution 76/300 of 28 July 2022 recognised by 161 votes for, none against and 8

[214] Ibid. Conclusion 4.
[215] Ibid. Conclusion 6.
[216] Ibid. Conclusion 10.
[217] ICJ. *North Sea continental shelf* (Germany v. Denmark; Germany v. Netherlands). Judgments of 20 February 1969. § 74.
[218] ICJ. *Legality of the Threat or Use of Nuclear Weapons*. Advisory Opinion of 8 July 1996. § 70.
[219] Ibid.

abstentions. It has been also maintained by UN HRC resolutions.[220] This right has been also enshrined in numerous regional multilateral treaties and instruments.[221] Additionally, in the course of advisory proceedings before the ICJ, a large number of States acknowledged that the right to a healthy environment crystallised as a part of customary international law.[222] There have been examples where the right to a healthy

[220] See UN HRC Resolution 48/13 of 18 October 2021"*The human right to a clean, healthy and sustainable environment*"; UN HRC Resolution 52/23 of 4 April 2023 "*The human right to a clean, healthy and sustainable environment*".

[221] See the African Charter on Human and Peoples' Rights (adopted on 27 January 1981, and entered into force on 21 October 1986); the Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights (Protocol of San Salvador) (adopted on 17 November 1988, and entered into force on 16 November 1999); the Convention on access to information, public participation in decision-making and access to justice in environmental matters (adopted on 25 June 1998, and entered into force on 30 October 2001); the Charter of Fundamental Rights of the European Union (adopted on 2 October 2000, and entered into force on 1 December 2009); the Arab Charter on Human Rights (adopted on 22 May 2004, and entered into force on November 2013); the ASEAN Human Rights Declaration (adopted on 18 November 2012); the Regional Agreement on Access to Information, Public Participation and Justice in Environmental Matters in Latin America and the Caribbean (adopted on 27 September 2018, and entered into force on 22 April 2021).

[222] See, e.g., Written Statement of Antigua and Barbuda, §§ 182 and 196. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-08-00-en.pdf (accessed: 08.04.2025); Written Statement of Costa Rica, § 82. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240326-wri-04-00-en.pdf (accessed: 08.04.2025); Written Statement of Vanuatu, § 484. URL: https://www.icj-cij.org/sites/default/files/case-related/187/187-20240321-wri-06-00-en.pdf (accessed: 08.04.2025); Written Statement of Namibia, §§ 121–123. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240319-wri-06-00-en.pdf (accessed: 08.04.2025); Written Statement of the European Union, § 258. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-07-00-en.pdf (accessed: 08.04.2025); Written Statement of Solomon Islands, §§ 174–176. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-30-00-en.pdf (accessed: 08.04.2025); Written Statement of Seychelles, § 144. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-30-00-en.pdf (accessed: 08.04.2025); Written Statement of Kenya, § 5.73. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-33-00-en.pdf (accessed: 08.04.2025); Written Statement of the Federated States of Micronesia, § 79. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240315-wri-03-00-en.pdf (accessed: 08.04.2025); Written Statement of Liechtenstein, § 45. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-34-00-en.pdf (accessed: 08.04.2025); Written Statement of El Salvador, § 42. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-25-00-en.pdf (accessed: 08.04.2025); Written Statement of Mexico, § 87. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240325-wri-03-00-en.pdf (accessed: 08.04.2025); Written Statement of Ecuador, § 3.103–3.107. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-27-00-en.pdf (accessed: 08.04.2025); Written Statement of Madagascar, § 62. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240320-wri-02-00-en.pdf (accessed: 08.04.2025); Written Statement of Bangladesh, § 110. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240325-wri-01-00-en.pdf (accessed: 08.04.2025); Written Statement of Argentina, § 184. URL: https://icj-

environment has been subject of enforcement by domestic courts and tribunals.[223] However, there are also persistent objectors, including the Russian Federation and the United States of America, who argue that the right to right to a clean, healthy and sustainable environment has not crystallised in customary international law.[224]

Taking into account above-mentioned State practice and its acceptance as law (*opinio juris*), it appears that a deductive international custom exists. For instance, Roberts A. emphasizes that "traditional custom is evolutionary and is identified through an inductive process in which a general custom is derived from specific instances of state practice…By contrast, modern custom is derived by a deductive process that begins with general statements of rules rather than particular instances of practice".[225] So modern custom can develop quickly, as it is deduced "from multilateral treaties and declarations by international fora such as the General Assembly, which can declare existing customs, crystallize emerging customs, and generate new customs".[226]

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cij.org/sites/default/files/case-related/187/187-20240322-wri-22-00-en.pdf (accessed: 08.04.2025); Written Statement of Costa Rica, §§ 80–83. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240326-wri-04-00-en.pdf (accessed: 08.04.2025); Written comments of Uruguay, §§ 108–115.URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240815-wri-40-00-en.pdf (accessed: 08.04.2025); Written comments of Kiribati, § 42. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240815-wri-04-00-en.pdf (accessed: 08.04.2025); Written comments of Tuvalu, § 20. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240814-wri-08-00-en.pdf (accessed: 08.04.2025); Written comments of Albania, §§ 35–36. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240815-wri-12-00-en.pdf (accessed: 08.04.2025); Written comments of Samoa, § 131. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240815-wri-35-00-en.pdf (accessed: 08.04.2025).

[223] See, e.g., *Dover District Council v. CPRE Kent*, [2017] UKSC 79; *Francisco Chahuan Chahuan v. Empresa Nacional de Petróleos*. (2019). Supreme Court of Chile. Case No. 5888-2019. Judgment of 28 May 2019; *Leghari v. Federation of Pakistan*. (2015). Lahore High Court. Case №W.P. No. 25501/2015. Order of 4 September 2015. *Gloucester Resources Limited v Minister for Planning* [2019] NSWLEC 7 [698].

[224] Written reply of the Russian Federation to the questions put by Judges Cleveland and Aurescu at the end of the hearing held on 13 December 2024. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20241220-oth-51-00-en.pdf (accessed: 08.04.2025); Written Statement of the United States of America, § 4.56. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-06-00-en.pdf (accessed: 08.04.2025).

[225] Roberts, A. (2001). Traditional and Modern Approaches to Customary International Law: A Reconciliation. *American Journal of International Law*, 95(4). P. 758.

[226] Ibid.

Firstly, there is a State practice in the forms of conduct in connection with resolutions adopted by an international organisation (e.g., UN HRC resolutions), decisions of national courts as well as States' positions presented before the ICJ. It appears that such State practice is widespread, representative, and consistent despite the persistent objections. Secondly, there is evidence of acceptance of this practice as law (*opinio juris*), such as UN GA resolution 76/300 of 28 July 2022 (161 votes in favour, none against and 8 abstentions), national legislation of States, and treaty provisions. Thus, the right to a clean, healthy and sustainable environment can be regarded as a deductive international custom.

Summing up, firstly, the use of the term "climate migrants" instead of "climate" refugees seems to be the most attractive approach; secondly, there is no consensus on the issue of climate migration, so this issue is still *lex ferenda*; thirdly, the author proposes that the right to a clean, healthy and sustainable environment is a deductive international custom (*lex lata*) derived from regional multilateral treaties and instruments and resolutions of international fora.

§ 3. The relationship between States' climate obligations and human rights obligations

In general, there are two approaches in addressing the climate change problem: mitigation and adaptation measures. The purpose of climate change mitigation is to enact measures to limit the extent of climate change, meaning reduce GHG emissions. While adaptation measures refer to preparation for the adverse effects of climate change (e.g., constructing sea-walls).[227] The climate change treaties contain States' obligations to mitigate and adapt to climate change.[228]

As regards a treaty interpretation, a general rule is contained in Article 31 of the Vienna Convention on the Law of Treaties (hereinafter — **VCLT**), which establishes a cumulative three-tier test (wording, context and object and purpose) accompanied by

[227] Lackner, M., Sajjadi, B., Chen, WY. (2022). Introduction to Climate Change Mitigation and Adaptation. In: Lackner, M., Sajjadi, B., Chen, WY. (eds) Handbook of Climate Change Mitigation and Adaptation. Springer, Cham. P. 14–15.
[228] See, e.g., Article 10 of the Paris Agreement.

the good faith principle in the interpretation of treaties.[229] The context criterion also means any relevant rules of international law applicable in the relations between the parties.[230] The phrase "any relevant rules of international law" refers to all recognised sources of international law the emanations of which can in principle be of assistance in the process of interpretation.[231] In fact, lit c highlights systemic integration as a function of treaty interpretation.[232]

Regarding the relationship between States' climate obligations and human rights obligations, there may be a normative conflict between two types of special law (*lex specialis*). In the report of the ILC Study Group "Fragmentation of International Law: Difficulties Arising from the Diversification and Expansion of International Law", Koskenniemi M. refers to the debates on trade law and environmental law.[233] It is assumed that there is currently a normative conflict between international human rights law and international climate change law. The principle of systematic integration can be applied to resolve such a conflict. For instance, international courts and quasi-judicial bodies have already employed this principle within climate change litigation, concluding that positive obligations under international human rights treaties may imply implementation of adequate adaptation and mitigation measures.[234] Besides, there is an extensive national jurisprudence confirming that States' positive human rights obligations require them to take positive steps to protect the enjoyment of human rights from the adverse effects of climate change, meaning adaptation and mitigation measures.[235]

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[229] Vienna Convention on the Law of Treaties (adopted on 23 May 1969, and entered into force on 27 January 1980).
[230] Ibid. Article 31 (3) (c) of the VCLT.
[231] O. Dörr, Schmalenbach K. (2018). Vienna Convention on the Law of Treaties: A Commentary / ed. by O. Dörr, Schmalenbach K. Heidelberg: Springer Berlin. P. 604–605.
[232] The report of the ILC Study Group on "Fragmentation of International Law: Difficulties Arising from the Diversification and Expansion of International Law" (2006), UN Doc A/CN.4/L.702, in its conclusions 17–21.
[233] The report of the ILC Study Group on "Fragmentation of International Law: Difficulties Arising from the Diversification and Expansion of International Law" (2006), UN Doc A/CN.4/L.702. P. 18.
[234] *Billy v. Australia*. §§ 8.12 and 8.14; *KlimaSeniorinnen v. Switzerland*, §§ 555–574.
[235] See also, e.g., *Jonah Ghemre v. Shell Petroleum Development Co. Nigeria Ltd et al*. (2005). Federal High Court of Nigeria. AHRLR 151. Judgment of 14 November 200. pp. 6–7, § 5; *Subhash*

In the course of advisory proceedings before the ICJ, a large number of States support the idea of harmonising obligations under international climate change regime and international human rights law.[236] For example, the European Union argues that these two regimes give rise to a single set of harmonious, compatible obligations.[237] The majority of States argue that international human rights law requires States to take both adaptation and mitigation measures when addressing climate change.[238] While the

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Kumar v. State of Bihar. (1991). Supreme Court of India. №240. p. 2; *Neubauer et al. v. Germany*. (2021). First Senate of Federal Constitutional Court of Germany, Cases 1 BvR 2656/18, 1 BvR 78/20, 1 BvR 96/20, 1 BvR 288/20. Decision of 24 March 2021. § 144; *VZW Klimaatzaak v. Kingdom of Belgium*. (2023). Court of Appeal, Brussels. Case № 2021/AR/15gs, 2022/AR/737, 2022/AR/891. Judgment of 30 November 2023. pp. 157–159; *Sharma and Others v. Minister for the Environment*. (2021). Federal Court of Australia. VID 607 of 2020. Judgment of 21 May 2021; *Leghari v. Federation of Pakistan*. (2015). Lahore High Court. Case №W.P. No. 25501/2015. Order of 4 September 2015; *The State of the Netherlands v. Urgenda Foundation*. (2020). Supreme Court of the Netherlands. Case №19/00135. Judgment of 13 January 2020. §§ 5.6.2–5.6.3; *PSB et al. v. Brazil (on Climate Fund)*. (2022). Supreme Court of Brazil. ADPF 708. Decision of 30 June 2022. §§ 36–37.

[236] See, e.g., Written Statement of the Democratic Republic of the Congo. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240304-wri-01-00-en.pdf (accessed: 08.04.2025); Written Statement of Columbia. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240311-wri-01-00-en.pdf (accessed: 08.04.2025); Written Statement of Latvia. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240319-wri-01-00-en.pdf (accessed: 08.04.2025); Written Statement of Peru. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240319-wri-05-00-en.pdf (accessed: 08.04.2025); Written Statement of Canada. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240320-wri-03-00-en.pdf (accessed: 08.04.2025); Written Statement of Madagascar. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240320-wri-02-00-en.pdf (accessed: 08.04.2025); Joint Written Statement of Denmark, Finland, Iceland, Norway and Sweden. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240321-wri-11-00-en.pdf (accessed: 08.04.2025); Written Statement of Australia. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240326-wri-02-00-en.pdf (accessed: 08.04.2025).

[237] Written comments of the European Union, § 82. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240719-wri-01-00-en.pdf (accessed: 08.04.2025).

[238] See, e.g., Written Statement of Singapore, § 3.73. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240320-wri-04-00-en.pdf (accessed: 08.04.2025); Written Statement of the European Union, § 274. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-07-00-en.pdf (accessed: 08.04.2025); Written Statement of Antigua and Barbuda, §§ 356 and 377. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-08-00-en.pdf (accessed: 08.04.2025); Written Statement of Uruguay, § 110. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-16-00-en.pdf (accessed: 08.04.2025); Written Statement of China, § 123. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-19-00-en.pdf (accessed: 08.04.2025); Written Statement of Egypt, § 205. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-24-00-en.pdf (accessed: 08.04.2025); Written Statement of Ecuador, § 3.114. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-27-00-en.pdf (accessed: 08.04.2025); Written Statement of Bangladesh, § 123. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240325-wri-

Russian Federation only allows for adaptation measures that can be taken to protect the right to life or the right to respect for private and family life.[239] Others, however, deny any link between States' climate obligations and human rights obligations.[240]

As regards legal doctrine, Putra A. concludes that "international human rights law may play a significant role in closing the current climate change framework gap".[241] For his part, Mayer B. supposes that "human rights treaties may have a rather limited role to play with regard to climate change mitigation."[242] However, Zahar A. believes that human rights law is not an appropriate source of legal obligations on climate change mitigation.[243] Nishimura L. argues for the systemic integration of human rights in climate change regime.[244]

Based on State practice and legal teachings, two approaches can be distinguished: **i)** a one-dimensional approach (international climate change law is *lex specialis*, and, therefore, international human rights law cannot be applicable in respect of States' obligations to mitigate and adapt to climate change); **ii)** a human rights-integrated approach coupled with a principle of harmonisaion (international human rights law may complement and fill the legal gaps in the climate change treaties). The

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01-00-en.pdf (accessed: 08.04.2025); Written Statement of Burkina Faso, § 13. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240402-wri-01-00-en.pdf (accessed: 08.04.2025).

[239] Written Statement of the Russian Federation. URL: https://icjcij.org/sites/default/files/case-related/187/187-20240321-wri-12-00-en.pdf (accessed: 08.04.2025).

[240] Written statement of the United Kingdom, § 122. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240318-wri-01-00-en.pdf (accessed: 08.04.2025); Written Statement of Switzerland, § 62. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240318-wri-02-00-en.pdf (accessed: 08.04.2025); Written Statement of Saudi Arabia, § 4.98. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240321-wri-08-00-en.pdf (accessed: 08.04.2025); Written Statement of the United States of America, § 4.39. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-06-00-en.pdf (accessed: 08.04.2025); Written Statement of the Republic of Korea, § 31. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-20-00-en.pdf (accessed: 08.04.2025); Written Statement of Indonesia, § 45. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-32-00-en.pdf (accessed: 08.04.2025); Written Statement of New Zealand, § 114. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-37-00-en.pdf (accessed: 08.04.2025).

[241] Putra A. *Op.cit*. P. 161.

[242] Mayer B. *Op.cit*. P. 451.

[243] Zahar, A. (2022). Human Rights Law and the Obligation to Reduce Greenhouse Gas Emissions. *Human Rights Review*, 23(3). P. 407.

[244] Nishimura, L. (2022). Adaptation and Anticipatory Action: Integrating Human Rights Duties into the Climate Change Regime. *Climate Law*, 12(2). P. 127.

second approach can be divided into two types: limited (international human rights law may require States to take adaptation measures in addressing climate change) and absolute (States are obliged to take both adaptation and mitigation measures under international human rights law).

To sum up, firstly, the "principle of systematic integration" can be applied to resolve a normative conflict between international climate change law and international human rights law; secondly, based on State practice and legal teachings, two approaches can be distinguished: a one-dimensional approach (international climate change law is *lex specialis*, and, therefore, international human rights law cannot be applicable in respect of States' obligations to mitigate and adapt to climate change) and a human rights-integrated approach (international human rights law may complement and fill the legal gaps in the climate change treaties), which can be divided into absolute and limited types.

Chapter conclusions: firstly, positive obligations of States in the field of human rights (obligations to "protect" and "fulfil") are applicable to climate change realm; secondly, "classical" human rights do not explicitly imply States' obligations to combat climate change, however, using the evolutionary method of treaty interpretation, they can encompass protection from the adverse impacts of climate change; secondly, based on regional multilateral treaties and instruments and resolutions of international fora, there is a deductive international custom — the right to a clean, healthy and sustainable environment is a deductive international custom (*lex lata*); thirdly, from the perspective of existing international legal rules, the use of the term "climate migrants" instead of "climate refugees" seems to be the most attractive approach (*lex ferenda*); fourthly, there are two approaches to the relationship between States' human rights and climate obligations: a one-dimensional approach and a human rights-integrated approach.

III. APPROPRIATNESS OF THE APPLICATION OF HUMAN RIGHTS TO CLIMATE CHANGE AND ENFORCEMENT OF THIS MODEL

The third chapter aims to assess the appropriateness of the using human rights concept in addressing the issue of climate change through two tools of the research, namely legal formalism (positivism) and a policy-oriented approach to international law (the New Haven School). The rationale for States to enforce the judicial decisions of international human rights bodies is analysed from the perspective a rational choice theory (International Law & Economics approach).

§ 1. Appropriateness of using the human rights concept in addressing climate change

It is noteworthy that, since 2008, climate change has been recognised as a threat to the full enjoyment of human rights.[245] The Paris Agreement is a single climate change treaty that includes a human rights protecting function in its non-binding preamble.[246] Even the Supreme Court of Brazil referred to the Paris Agreement as 'a human rights treaty'.[247] As a result, human rights-based arguments have begun to be used in climate change litigation. The first strategic climate change case is *The State of the Netherlands v. Urgenda Foundation*, in which the Supreme Court of the Netherlands held Articles 2 and 8 ECHR apply to climate change.[248] In this case, the Court directly applied both the climate change treaties and the ECHR. At the international level, the HR Committee was a pioneer in holding Australia responsible for violations of the right to privacy and minority rights of indigenous peoples for

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[245] UN HRC Resolution 7/23 of 28 March 2008 *"Human rights and climate change"*. URL: https://www.uncclearn.org/wp-content/uploads/library/a_hrc_res_7_23.pdf (accessed: 18.01.2025).
[246] The Paris Agreement (signed on 22 April 2016 and entered into force on 4 November 2016).
[247] *PSB et al. v. Brazil (on Climate Fund)*. (2022). Supreme Court of Brazil. ADPF 708. Decision of 30 June 2022. § 17. The Paris Agreement as a Human Rights Treaty: PSB et al. v Brazil. URL: https://ohrh.law.ox.ac.uk/the-paris-agreement-as-a-human-rights-treaty-psb-et-al-v-brazil/ (accessed: 02.05.2025).
[248] *The State of the Netherlands v. Urgenda Foundation.* (2020). Supreme Court of the Netherlands. Case №19/00135. Judgment of 13 January 2020. § 5.6.4.

failing to adopt adequate adaptation measures in response to climate change.[249] The ECtHR then expanded the scope of international human rights law in addressing climate change, concluding that human rights require not only adaptation measures, but also mitigation.[250] Taking into account the active use of human rights-based arguments in climate change litigation, it follows that international climate change law and international human rights law are not autonomous regimes *stricto sensu*. Applying a human-rights-based approach, these two branches of international law should be interpreted under the principle of systematic integration. This approach has already been maintained by several States.[251] In this respect, customary international human rights law (e.g., the right to life and the right to a clean, healthy and sustainable environment) would fill the legal *lacunas* in international climate change law.

That said, the application of international human rights law is not unlimited. Such application is limited by *ratione materiae*, *ratione personae* and *ratione loci*. Firstly, not all human rights can be affected by the adverse effects of climate change; the rights most affected are the right to life and the right to respect for private and family life. In jurisprudence, special criteria have been developed for recognising violations of these rights: direct threats to the right to life or prevent individuals from enjoying their right to life with dignity[252] (the right to life) and an 'actual interference' with the applicant's enjoyment of his or her private or family life or home and a certain level of severity was attained[253] (the right to respect for private and family life). As for *ratione personae*, individuals are entitled to file their communications with the HR

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[249] *Billy and others v. Australia*. §§ 8.12 and 8.14.
[250] *KlimaSeniorinnen v. Switzerland*, §§ 555–574.
[251] See, e.g., Written statement of the European Union, § 229. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240322-wri-07-00-en.pdf (accessed: 02.05.2025); Written statement of Colombia, § 3.71. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240311-wri-01-00-en.pdf (accessed: 02.05.2025); Written statement of Singapore, § 3.87. URL: https://icj-cij.org/sites/default/files/case-related/187/187-20240320-wri-04-00-en.pdf (accessed: 02.05.2025).
[252] *Billy and others v. Australia*. § 8.3.
[253] *KlimaSeniorinnen v. Switzerland*. § 514; ECtHR. *Pavlov and Others v. Russia*. Application no. 31612/09. Judgment of 11 October 2022. §59; ECtHR. *Çiçek and Others v. Turkey*. Application no. 44837/07. Decision of 4 February 2020. §22

Committee, while only NGOs acting on behalf of individuals may lodge climate-related complaints with the ECtHR. The choice of international fora is limited by the fact that these institutions have already dealt with climate disputes. In terms of *ratione loci*, territorial scope is limited by the territory of a particular State exercising jurisdiction over individuals. Besides, certain causal links between activities within a State emitting GHG and the adverse impact on the rights and well-being of people outside its borders cannot justify creating new, or expand existing grounds for extraterritorial jurisdiction under the ECHR.[254] Thus, the application of the human rights concept in the fight against climate change is appropriate, with certain limitations, including *ratione materiae*, *ratione personae* and *ratione loci*.

The policy-oriented approach to international law replaces the legalism of traditional thinking with more pragmatic ideas: contextualism and problem-solving orientation.[255] Generally, the New Haven School considers law as "a process of decision that is both authoritative and controlling; it places past such decisions in the illuminating light of their conditioning factors, with environmental and predispositional, and appraisers decision trends for their compatibility with clarified goals".[256] The New Haven School was founded by professors Myres S. McDougal and Harold D. Lasswell.[257] According to the representatives of the New Haven School, any social process is described in terms of the participants, their perspectives, the situations, bases of power, strategies, and a comprehensive set of values.[258] One of the idea of the New Haven School is that each and every person can now participate, whether directly or through the mediation of groups, in the processes of decision that affect their lives.[259] It seems that a situation of combating climate change is a complex social process,

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[254] *Duarte Agostinho et al. v. Portugal and Others.* §§ 193, 195.
[255] McDougal, M.S. (1987). The Impact of International Law Upon National Law: A Policy-Oriented Perspective. Studies in World Public Order. New Haven: Yale University Press. P. 168.
[256] Reisman, W. Wiessner, S. Willard, A. (2007). The New Haven School: A Brief Introduction. *Yale Journal of International Law,* 32(575). P 576.
[257] Ibid. P. 575.
[258] Ibid. P. 577.
[259] Ibid. P. 576–577.

involving not only decision-makers (States) but also various influencers (NGOs or eco-activists).

From the perspective of a policy-oriented approach, the use of the human rights concept in addressing climate change is appropriate, since, firstly, international climate change law and international human rights law share a single common goal (value) — well-being; secondly, non-state actors (NGOs and eco-activists) influence existing international law by applying to international human rights bodies. In fact, the Paris Agreement aims to hold the increase in the global average temperature to well below 2°C above pre-industrial levels and pursuing efforts to limit the temperature increase to 1.5°C.[260] In order to achieve this particular goal (well-being), the decision-makers take mitigation and adaptation measures. While non-state actors (influencers) exercise control over how decision-makers fulfill their climate obligations. NGOs and individuals are those actors who hold States responsible for non-fulfillment of its human rights obligations, which imply taking mitigation and adaptation measures. Additionally, resorting to international human rights bodies and participating in climate change litigation against governments, they influence existing international law. Due to their climate complaints, the international human rights bodies are given the opportunity to interpret existing rules of international law in light of the new challenges faced by individuals and NGOs. Thus, in the context of combating climate change, States are creating international obligations, while non-state actors are influencing existing rules of international law by bringing climate lawsuits before international human rights bodies. In the near future, the relationship between international climate change law and international human rights law will only increase due to the activities of decision-makers (States) and influencers (NGOs and eco-activists).

To sum up, from a positivist standpoint, the application of the human rights concept in addressing climate change is appropriate, as customary international human rights law and international climate change law might be interpreted in a harmonious manner, when the former fills in legal gaps of the latter. The application of international

[260] The Paris Agreement (signed on 22 April 2016 and entered into force on 4 November 2016).

human rights law is by three categories, such as *ratione materiae*, *ratione personae* and *ratione loci*. From the perspective of the New Haven School, combating climate change is a complex social process, involving decision-makers (States) and influencers (NGOs or eco-activists): while States are creating international obligations, non-state actors are influencing existing rules of international law by bringing climate lawsuits before international human rights bodies. Accordingly, international climate change law and international human rights law complement each other, when the former creates States' climate obligations, and the latter implements a mechanism to hold States responsible for failing to fulfil their human rights obligations, which also include taking mitigation and adaptation measures.

§ 2. States' rationale to enforce judicial decisions of international human rights bodies

The purpose of this section is to identify the reasons why States enforce the judicial decisions of international human rights bodies on climate change. The analysis is limited by two landmark cases: *Billy and others v. Australia* before the HR Committee and *KlimaSeniorinnen v. Switzerland* before the ECtHR. The research tool is a rational choice theory (International Law & Economics approach).

There are two general groups of theories of law compliance: theories of material pressures, and theories that depend primarily on ideas, identity arguments, and persuasion.[261] The most common theory of compliance with international law is realism: compliance depends on the willingness of States to enforce agreements, using material pressures if necessary.[262] The second cluster of theories explaining compliance with international law rests on its legitimacy as a social institution.[263] From the perspective of a rational choice theory (International law & economics approach), three

[261] Carlsnaes, W., Thomas, R-K., Simmons, Beth. A. (2013). Handbook of international relations / ed. by Walter Carlsnaes, Thomas Risse and Beth A. Simmons. London; Thousand Oaks, Calif.: SAGE. P. 365–366.
[262] Ibid. P. 366.
[263] Ibid. P. 369.

"Rs" (reputation, reciprocity, and retaliation) of compliance are the keys to understanding why States comply with international obligations.[264] A. T. Guzman uses the term "reputation" as a State's reputation for compliance with legal obligations consists of judgments about the State's past behavior and predictions made about future compliance based on that behavior.[265] While the term "reputational sanction" means the cost imposed on a state when its reputation is damaged.[266] A. T. Guzman assumes that "states have no particular taste or preference for a good reputation, but rather are concerned with maintaining good standing within the international community only to the extent that changing one's standing or reputation affects payoffs".[267] It appears that the enforcement of judicial decisions of international human rights bodies concerning the issue of climate change can be explained by the willingness of States to maintain good standing in the international community.

Firstly, it is necessary to determine the legal force of judicial decisions. While final judgments of the ECtHR are binding on High Contracting Parties in any case to which they are parties under Article 46 of the Convention[268], the nature of views of the HR Committee is debatable. In legal doctrine, the views of the HR Committee and other UN treaty-based bodies are often referred to as recommendations, so they are not legally binding.[269] That said, the views issued by the HR Committee under the Optional Protocol exhibit some of the principal characteristics of a judicial decision, as they are arrived at in a judicial spirit, including the impartiality and independence of Committee

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[264] Guzman, A.T. (2008). A General Theory of International Law. How International Law Works: A Rational Choice Theory. Oxford: Oxford University Press. P. 33.
[265] Ibid. P. 34.
[266] Ibid. P. 33.
[267] Ibid. P. 35.
[268] Convention for the Protection of Human Rights and Fundamental Freedoms (adopted on 4 November 1950, and entered into force on 3 September 1953).
[269] Международное право. Учебник. Под редакцией А.А. Ковалева, С.В. Черниченко. Москва, 2008. С. 316.; Вашкевич А. (2012). Институт обращения в международные органы для защиты прав и свобод личности в конституционном праве Республики Беларусь и зарубежных странах. *Вестник прав человека*, № 1. С. 24

members, the considered interpretation of the language of the Covenant, and the determinative character of the decisions.[270]

As regards the enforcement of views in the case of *Billy and others v. Australia*, it is worth noting that the HR Committee directly provided for the measures that Australia had to take: **a)** providing adequate compensation to the authors for the harm that they have suffered; **b)** conducting meaningful consultations with the authors' communities in order to conduct needs assessments; **c)** continuing to implement measures necessary to secure the communities' continued safe existence on their respective islands; **d)** monitoring and reviewing the effectiveness of the measures implemented and resolve any deficiencies as soon as practicable.[271] After a year, in its official reply, Australia agreed with the finding that climate change is adversely impacting the claimants' daily lives and cultural practices, however, it refused to award adequate compensation to the claimants.[272] In recent newspapers, it is said that the Australian government started to invest in construction of seawalls against rising sea levels.[273] It gives hope that the rights of indigenous peoples will be better protected from the adverse effects of climate change.

Regarding the enforcement of ECtHR judgment in the case of *KlimaSeniorinnen v. Switzerland*, the ECtHR did not prescribe in detail what measures should be taken in order to effectively comply with this judgment. The Court considered that the respondent State, with the assistance of the Committee of Ministers of the Council of Europe, is better able to identify specific measures that can be taken.[274] Additionally, the association was awarded compensation in the amount of 80,000 euros. As for the

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[270] CCPR. General Comment No. 33. § 11. URL: https://digitallibrary.un.org/record/659368 (accessed: 02.05.2025).
[271] *Billy and others v. Australia*. § 11.
[272] One Year On from Historic Torres Strait UN Climate Victory — no compensation despite legal finding. ClientEarth, 25 September 2023. URL: https://www.clientearth.org/latest/press-office/press/one-yearon-from-historic-torres-strait-un-climate-victory-no-compensation-despite-legal-finding/ (accessed: 02.05.2025).
[273] Government ignores UN order to compensate the Torres Strait. The Saturday Paper. URL: https://www.thesaturdaypaper.com.au/news/environment/2024/07/06/government-ignores-un-order-compensate-the-torres-strait (accessed: 02.05.2025).
[274] *KlimaSeniorinnen v. Switzerland*. § 667.

implementation of the judgment, the Committee of Ministers of the Council of Europe **i)** noted that the just satisfaction awarded by the ECtHR was paid on time and that the applicant association did not avail itself of the possibility to request the reopening of the domestic proceedings; **ii)** recalled that the Court identified three types of measures to be addressed in relation to the State's positive obligation to ensure effective protection from the serious adverse effects of climate change, namely mitigation and adaptation measures as well as procedural safeguards. As for mitigation measures, the respondent State has filled a number pf legislative gaps (e.g., the adoption and entry into force on 1 January 2025 of the revised CO2 Act, which sets climate goals and measures until 2030, as well as of the Act on the secure electricity supply and the Climate Protection ordinance). As regards adaptation measures, the "Adaptation to Climate Change in Switzerland" network has been set up. Additionally, the report "Risks and Opportunities of Climate Change" is currently being updated. In terms of procedural safeguards, there have been public consultations on this matter.[275] As a result of the analysis, it should be noted that the enforcement of two decisions is partial, as Australia has not paid the adequate compensation to the claimants and Switzerland is still in the process of taking all necessary measures.

That said, the question arises as to why States decided to enforce these decisions, particularly views of the HR Committee, which are generally considered non-binding. In the present research, a rational choice theory is used to answer this question. It is worth mentioning that Australia and Switzerland have become the first "delinquents" because of their inaction to address the issue of climate change. Therefore, the reputation of these States has already been damaged. For them, one of the ways to restore their reputation was to show other States that they were abiding international legal obligations by enforcing judicial decisions of international human rights bodies. As a result, these two decisions by international human rights bodies have become a

[275] Decisions of Ministers' Deputies. H46-30 Verein KlimaSeniorinnen Schweiz and Others v. Switzerland (Application No. 53600/20). URL: https://climatecasechart.com/wp-content/uploads/non-us-case-documents/2025/20250306_Application-no.-5360020_decision.pdf (accessed: 02.05.2025).

reputational sanction for States that fail to perform their human rights obligations, which also imply taking adaptation and mitigation measures to tackle climate change. Despite the partial enforcement of the judicial decisions, States demonstrated that they are willing to refine their mitigation and adaptation policies in order to not so much to fulfill their international obligations, but rather to restore their reputation and show other States that they are reliable partners for further cooperation in combating climate change. Thus, the rationale for Australia and Switzerland to enforce the judicial decisions of international human rights bodies appears to have been rooted in their willingness to maintain good reputations within international community.

Chapter conclusions: firstly, the application of the human rights concept in tackling the climate change problem is appropriate, with certain limitations, such as *ratione materiae*, *ratione personae* and *ratione loci*; secondly, from the standpoint of the New Haven School, combating climate change is a complex social process, involving decision-makers (States) and influencers (NGOs or eco-activists): while States are creating international obligations, non-state actors are influencing existing rules of international law by bringing climate lawsuits before international human rights bodies; thirdly, the rationale for Australia and Switzerland to enforce the judicial decisions of international human rights bodies seems to be rooted in their willingness to maintain a good reputation in the international community.

CONCLUSION

Originally, the relationship between human rights and climate change was recognised by the UN GA Resolution 7/23 of 28 March 2008. The Paris Agreement then became ‘a human rights treaty’, with a reminder of States’ respective human rights obligations in its non-binding preamble. As a result, human rights-based arguments began to be applied in climate change litigation The relevant provisions of international human rights treaties have been interpreted in an evolutionary and systematic manner by domestic and international courts. Based on regional multilateral treaties and instruments and resolutions of international fora, there is a deductive international custom — the right to a clean, healthy and sustainable environment is a deductive international custom (*lex lata*). From the perspective of existing international legal rules, the use of the term “climate migrants” instead of “climate refugees” seems to be the most attractive approach (*lex ferenda*). There are two approaches to the relationship between States’ human rights and climate obligations: a one-dimensional approach and a human rights-integrated approach.

Applying a human-rights-based approach, the application of the human rights concept in addressing climate change is appropriate. In this respect, international climate change law and customary international human rights law (e.g., the right to life and the right to a clean, healthy and sustainable environment) should be interpreted in a harmonious manner, so that the latter would fill the legal gaps in international climate change law. The application of international human rights law is limited by certain limitations, including *ratione materiae*, *ratione personae* and *ratione loci*. From the standpoint of a policy-oriented approach (the New Haven School), combating climate change is a complex social process, involving decision-makers (States) and influencers (NGOs or eco-activists). In this regard, it would be appropriate to apply the concept of human rights in addressing the problem of climate change, since, firstly, international climate change law and international human rights law share a single common goal (value) — well-being; secondly, non-state actors (NGOs and eco-activists) influence existing international law by applying to international human rights bodies.

As regards the second part of the research question, it is worth noting that the rationale for States to enforce judicial decisions of international human rights bodies is analysed from the perspective a rational choice theory (International law & economics approach). As a result of the analysis of two landmark cases (*Billy and others v. Australia* and *KlimaSeniorinnen v. Switzerland*), it appears that the rationale for Australia and Switzerland to enforce the judicial decisions of international human rights bodies is rooted in their willingness to maintain a good reputation in the international community. By enforcing the judicial decisions, States have shown that they are willing to refine their mitigation and adaptation policies in order to not so much to fulfill their international obligations, but rather to restore their reputation and demonstrate other States that they are reliable partners for further cooperation in combating climate change.

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4. International Covenant on Economic, Social and Cultural Rights, (adopted on 16 December 1966, and entered into force on 3 January 1976);
5. Vienna Convention on the Law of Treaties (adopted on 23 May 1969, and entered into force on 27 January 1980);
6. African Charter on Human and Peoples' Rights (adopted on 27 January 1981, and entered into force on 21 October 1986);
7. Cartagena Declaration on Refugees, Colloquium on the International Protection of Refugees in Central America, Mexico and Panama (adopted on 22 November 1984);
8. Additional Protocol to the American Convention on Human Rights in the Area of Economic, Social and Cultural Rights (Protocol of San Salvador) (adopted on 17 November 1988, and entered into force on 16 November 1999);
9. United Nations Framework Convention on Climate Change (signed on June 1992-1993, and entered into force on 21 March 1994);
10. Kyoto Protocol (signed on 11 December 1997, and entered into force on 16 February 2005);
11. Convention on access to information, public participation in decision-making and access to justice in environmental matters (adopted on 25 June 1998, and entered into force on 30 October 2001);
12. Charter of Fundamental Rights of the European Union (adopted on 2 October 2000, and entered into force on 1 December 2009);
13. Arab Charter on Human Rights (adopted on 22 May 2004, and entered into force on November 2013);
14. African Union Convention for the protection and assistance of internally displaced persons in Africa (adopted on 23 October 2009, and entered into force on 6 December 2012);
15. ASEAN Human Rights Declaration (adopted on 18 November 2012);
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17. Paris Agreement (signed on 22 April 2016, and entered into force on 4 November 2016);
18. Regional Agreement on Access to Information, Public Participation and Justice in Environmental Matters in Latin America and the Caribbean (adopted on 27 September 2018, and entered into force on 22 April 2021).

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